

UK Public-Sector Data Linkage, Algorithmic Prediction & the City of London

FULL DOSSIER — Complete Specification

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What this is / is not. A complete transparency dossier from public primary sources, each verified live. **It alleges no illegality.** The processing is lawful; the case is *accountability, bias, and ethics*. Labels: CONFIRMED / LIKELY / UNKNOWN / SPECULATION. Verify primaries; take a media-law review.

Central thesis (the spine). UK public bodies link citizens' administrative records **at scale and without consent** — lawfully, under public-task and law-enforcement powers — and use that linked data not only to *match* people but to **profile and predict** them. The matching (MoJ's Splink) is **probabilistic** and is used operationally, including a **probation→police daily PNC pilot**. Beyond matching, the same data feeds **prediction systems with documented bias**: the **DWP's anti-fraud AI** (its own analysis admits statistically significant bias by age/disability/marital status/nationality), **OASys** reoffending tools (less accurate for Black offenders), and a **MoJ "Homicide Prediction Project"** built on police + health data that sweeps in victims and witnesses. Much of the analytics layer runs through a small number of contractors — notably **Palantir/PwC**. The DPIAs largely exist but are **unpublished**; opt-outs and published error/redress are largely absent. Lawful — and, on the public record, under-scrutinised.

This dossier consolidates two investigations verbatim. Part A = UK linkage & algorithmic prediction (MoJ/NHS/ONS/DWP). Part B = City of London Corporation (incl. the Palantir/NFIB thread).

UK Public-Sector Record Linkage — Public-Interest Disclosure

A sourced, evidence-graded account of what is linked, by whom, under what legal basis, with what safeguards, and what rights citizens have.

- **Compiled:** 2026-06-10 · **Version:** 1.0
- **Status:** First-pass, fully source-checked. Open for correction.
- **Scope:** MoJ Splink; MoJ *Data First*; MoJ *BOLD*; NHS England *Data Linkage Hub*; ONS *Census 2021* → *PDS*; and the UK GDPR / DUAA 2025 legal framework.

What this document is — and is not. This is a transparency record assembled entirely from **public, primary sources**, each fetched and confirmed live on the access date shown. It **does not allege that any body has acted unlawfully**. Where the public record does not answer a question, that is marked **UNKNOWN** and turned into a Freedom of Information request — it is not filled by inference. Every factual statement carries a status and a source ID resolving to a URL in the Appendix. Please correct any error against the cited source.

How to read the statuses

- **CONFIRMED** — established from a primary/official source, cited and verified live.
- **LIKELY** — strong inference or good secondary source; not yet primary-confirmed.
- **UNKNOWN** — no sourced answer in the public record → an open question / FOI request.
- **SPECULATION** — an explicit, labelled hypothesis. Never presented as fact.

Executive summary

The UK operates several large **probabilistic record-linkage** programmes that join individuals' records across government using **Splink**, an open-source matching library the Ministry of Justice built and ADR UK funded. **[CONFIRMED]**

The public record is, in fact, reasonably full on *what* is linked, *by whom*, and *how access is controlled*. The Ministry of Justice's own **Algorithmic Transparency Record** states the Data First linkage is for **research and statistics only — "not for operational decision-making"** — and that a **Data Protection Impact Assessment was completed**. **[CONFIRMED]** No evidence of unlawful conduct was found, and the most serious concern (that linkage drives automated decisions about individuals) is, on the government's own record, **not** the case for Data First.

What is **not** in the public record, and what this disclosure asks for, is narrow and specific:

1. **The completed DPIA is not published.** Its existence is officially confirmed; the document is not public.
2. **No individual opt-out or objection route** is documented for the MoJ linkage programmes.
3. **No programme-specific linkage-error rates are published, and no remedy is described** for a person who is wrongly linked.

Separately, the **Data (Use and Access) Act 2025** (in force 5 Feb 2026) rewrote the relevant law — weakening the default protection against automated decisions for ordinary data, while retaining it for sensitive data, and handing the boundaries of that regime to ministerial regulation. This is a **policy** development worth public attention; it is **not** evidence of anything about the linkage programmes, and is presented here as context, with one forward-looking concern explicitly labelled.

1. The linkage landscape (CONFIRMED unless noted)

- **Splink** is a Ministry of Justice-developed, open-source probabilistic record-linkage library (Fellegi–Sunter model, EM-trained), ADR-UK-funded under Data First. (S01, S03, S25)
- **Data First** links **seven** cross-justice datasets for England & Wales — magistrates', Crown, family and civil courts; prisoner custodial journey; probation; and **offender assessments (OASys)** — plus a **MoJ–DfE link** of criminal history to education data. (S06, S07, S18, S24) OASys carries 1,100+ variables including domestic-violence and sexual-offending assessments. (S06)
- The cross-justice product is a Splink-generated **person-link lookup table**, not the underlying case records. (S07, S08)
- **BOLD (Better Outcomes through Linked Data)** is a second, **broad**er MoJ-led programme linking police, CPS, courts, prisons, probation, **health & social care**, **HMRC Child Benefit and drug-treatment (NDTMS)** data across many departments. (S22)
- **NHS England** is building a Splink-based **Data Linkage Hub**, using the Personal Demographics Service as the linkage "spine." (S13, S41)
- **ONS** used Splink to link **Census 2021** → **PDS**, assigning NHS numbers and feeding the **Public Health Data Asset**. (S14)
- Access is by **accredited researchers** in de-identified form, via the **ONS Secure Research Service** (Five Safes; Digital Economy Act 2017 accreditation) and **SAIL Databank**. (S06, S11, S30, S31, S33)

2. Legal basis and safeguards (what the record shows)

- UK GDPR **special-category** processing requires **both** an Article 6 basis **and** an Article 9 condition (plus a DPA 2018 Schedule 1 condition where relevant). (S15, S16, S37 — *CONFIRMED*)
- For the sibling **BOLD** programme the stated basis is **Art. 6(1)(e)** ("common law powers for the administration of justice") + **Art. 9(2)(h)** (health/social care, under Caldicott and NHS IGARD). (S22 — *CONFIRMED*) The equivalent published statement for **Data First** sits in a privacy-statement PDF that could not be machine-read for this pass (S20 — *to confirm*).
- The **research/statistics** Article 9 condition (DPA 2018 Sch. 1 Pt 1 para 4) now references UK GDPR **Art. 84B** (formerly Art. 89(1)), per DUAA 2025; that paragraph does not itself require an appropriate policy document. (S37 — *CONFIRMED*)
- **Data First use is research-only** — "**not for operational decision-making**"; **not integrated into any decision-making process** — per the MoJ Algorithmic Transparency Record (v3.0, 17 Dec 2024), which also states a **DPIA was completed**. (S19 — *CONFIRMED*)

3. The legal backdrop: Data (Use and Access) Act 2025 (context)

Verified against primary text on legislation.gov.uk (S42–S50):

- DUAA 2025 **substituted** UK GDPR Article 22 with new **Articles 22A–22D** (in force 5 Feb 2026). (S48, S42)
- For **ordinary** personal data the old prohibition-by-default on solely-automated significant decisions becomes **permitted-unless**; for **special-category** data a **near-prohibition is retained** (Art. 22B). (S44 — *CONFIRMED*)
- Core safeguards (be informed, make representations, obtain human intervention, contest) are **retained** in Art. 22C. (S45 — *CONFIRMED*)
- A new lawful basis, **Art. 6(1)(ea) "recognised legitimate interest"**, draws on an **Annex 1** the **Secretary of State may amend by regulations**; Annex 1 categories include national security, **crime**, emergencies and safeguarding. (S47, S49 — *CONFIRMED*)
- **Article 22D** lets the **Secretary of State define, by regulation**, what counts as "meaningful human involvement" and "significant effect," and modify how the safeguards operate (affirmative procedure). (S46 — *CONFIRMED*)
- The indirect-collection transparency duty (**Article 14**) was also amended. (S50 — *LIKELY; verbatim check pending*)

Labelled hypothesis (SPECULATION — watch-item, not a claim): the Art. 22D regulation power and the SoS-amendable Annex 1 are *general* levers that could, in future, re-scope automated-decision protections across government. There is **no evidence** any such regulation targets the linkage programmes. Recorded only as something to monitor (the relevant statutory instruments), explicitly not as an assertion of intent.

4. The transparency gaps — and the asks (UNKNOWN → FOI)

These are framed as requests for documents and facts, alleging nothing:

1. **Publish the completed Data First DPIA** that the Algorithmic Transparency Record says exists. (C11b)
2. **State whether any individual opt-out / objection route exists** for Data First and BOLD, and how it is exercised. (C12)
3. **Publish linkage-error rates** (false-match / missed-match) and **describe the remedy** for a person wrongly linked. (C14)
4. **Confirm the lawful basis and Article 9/10 conditions** for Data First and BOLD, and release their DPIAs. (C25, C26; FOI-1, FOI-5)
5. **Clarify the NHS Data Linkage Hub's status** and whether the National Data Opt-Out applies. (C08, FOI-2)
6. **Confirm the ONS Census→PDS legal gateway** and downstream PHDA uses/retention. (C17, C09, FOI-3)

Full draft requests to MoJ, NHS England, ONS and ADR UK are in [foi/foi_requests.md](#).

5. What this disclosure does NOT say

- It does **not** allege any unlawful processing, breach, or bad faith by any body.
- It does **not** claim the linkage drives decisions about individuals — the official record says the opposite for Data First.
- It does **not** treat "we could not find X" as "X does not exist" — only as a transparency gap.
- It contains **nothing** that could help re-identify any individual.

6. Methodology, verification and limitations

- Every source was fetched and confirmed live; an automated checker ([scripts/source_checker.py](#)) re-verifies the whole register and is run before release. At compilation: **0 dead links**.
- Statutory references were verified against the **current** text on [legislation.gov.uk](#), including the DUAA 2025 amendments in force 5 Feb 2026.
- **Limits, stated honestly:** two MoJ PDFs (the Data First privacy statement S20 and the MoJ–DfE notice S23) resolve and download but could not be text-extracted by the tools used, so their contents do **not** back any claim here and should be read directly. Several NHS Digital / ICO pages block automated clients; their points were sourced from accessible equivalents (the dropped URLs are logged in [evidence/raw_links.json](#)). The ONS legal gateway (C17) is **LIKELY**, not confirmed. The Article 14 change (C24) needs a verbatim read.
- This compilation was assembled with AI research assistance. **Before formal publication or transmission to officials, it should be reviewed by a person and, ideally, a media/data-protection lawyer** — not because of any known inaccuracy, but because the stakes warrant it.

Appendix — Source register (verified live 2026-06-10)

Resolves to the machine-readable register in [evidence/raw_links.json](#) and the table in [research/sources.md](#). Flags: LIVE · STALE? (live, legacy URL) · binary PDF (manual read).

Splink (core): S01 repo [github.com/moj-analytical-services/splink](#) · S02 docs [moj-analytical-services.github.io/splink](#) · S03 IJPDS paper [ijpds.org/article/view/1794](#) · S04 org [github.com/moj-analytical-services](#) · S25 gov.uk blog [dataingovernment.blog.gov.uk/2022/09/23/splink-fast-accurate-and-scalable-record-linkage/](#) · S26 evaluation tutorial [.../splink/demos/tutorials/07_Evaluation.html](#).

MoJ Data First / BOLD: S06 ADR annual report reports [adr.uk.org/annual-report-2023-2024/...](#) · S07 ONS SRS metadata [ons.metadata.works/browser/dataset?id=58617](#) · S08 ADR catalogue [datacatalogue.adr.uk/browser/dataset/58617/1](#) · S11 HMCTS data access [gov.uk/guidance/access-hmcts-data-for-research](#) · S18 Data First landing [gov.uk/guidance/ministry-of-justice-data-first](#) · **S19 Algorithmic Transparency Record**

gov.uk/algorithmic-transparency-records/moj-data-first-splink · S20 privacy statement (PDF) · S21 user guide v8.2 (PDF) · **S22 BOLD privacy notice**

gov.uk/government/publications/ministry-of-justice-better-outcomes-through-linked-data-bold/... · S23 MoJ–DfE notice (PDF) · S24 criminal-courts landing

gov.uk/government/publications/data-first-criminal-courts-linked-data.

ONS / ADR UK / SAIL: S14 Census→PDS report

ons.gov.uk/.../census2021topersonaldemographicsservicelinkagereport · S30 SRS data-access policy · S31 About the SRS · S32 ADR UK ethics adruk.org/about-us/ethics-responsibility/ · S33 SAIL governance

saildatabank.com/governance/ · S38 ONS special-category for statistics · S39 NSDEC

uksa.statisticsauthority.gov.uk/.../national-statisticians-data-ethics-advisory-committee/.

NHS England: S13 Data Linkage Hub nhsengland.github.io/datascience/our_work/data-linkage-hub/ · S28 HRA National Data Opt-Out (CAG/s.251) · S40 FDP overarching DPIA

england.nhs.uk/long-read/overarching-data-protection-impact-assessment-dpia-for-the-federated-data-platform-fdp/ · S41 IJPDS NHS pipeline ijpds.org/article/view/3271.

Law (ICO / legislation.gov.uk): S15–S17 ICO lawful-basis/special-category guidance · S35 ICO DUAA summary · S36 ICO right-to-be-informed exceptions · **S37 DPA 2018 Sch. 1** legislation.gov.uk/ukpga/2018/12/schedule/1 · **S42**

DUAA 2025 legislation.gov.uk/ukpga/2025/18/contents · **S43–S46 UK GDPR Arts. 22A–22D**

legislation.gov.uk/eur/2016/679/article/22A (...22B/22C/22D) · S47 Art. 6 (incl. 6(1)(ea)) · S48 Art. 22 (substituted) · S49 Annex 1 (recognised legitimate interests) · S50 Art. 14 (as amended).

Retired/dropped (logged in raw_links.json _meta): S05 (ADR project page, 404×3); three NHS Digital/ICO subpages that block automated clients (points carried by accessible equivalents).

A2. Claims matrix (C01–C36)

Claims matrix

One atomic assertion per row. Status ∈ {CONFIRMED, LIKELY, UNKNOWN, SPECULATION}. A claim may be CONFIRMED only if its source is **live-verified** (see `source_check_report.md`) and the supporting content was actually read. UNKNOWN rows carry no sourced answer and feed `open_questions.md` / `foi_requests.md`.

Statutory baseline (verified 2026-06-10): UK references are rebased to the **Data (Use and Access) Act 2025** (2025 c.18, S42), in force 5 Feb 2026. It replaced UK GDPR **Art. 22** with **Arts. 22A–22D** (S43) and renumbered the research safeguard **Art. 89(1)** → **Art. 84B** (seen in the current DPA 2018 Sch. 1 text, S37). "Article 9 + Article 6 both required" is unchanged.

ID	Claim	Status	Source	Evidence	Confidence	Legal relevance	Follow-up needed
C01	Splink is a MoJ-developed open-source probabilistic record-linkage library (Fellegi–Sunter, EM-trained).	CONFIRMED	S01, S03, S25	MoJ repo + IJPDS paper + gov.uk blog.	High	Identifies the linkage technique.	Confirm licence (MIT) + maintained version.
C02	Splink's development was funded by ADR UK under the Data First programme.	CONFIRMED	S03, S18	IJPDS acknowledgement + gov.uk Data First page.	High	Ties tool to a funded govt programme.	—
C03	Data First comprises 7 cross-justice datasets (magistrates', Crown, family, civil courts; prisoner custodial journey; probation; offender assessments/OASys) for E&W, plus a MoJ–DfE criminal-history × education link.	CONFIRMED	S06, S07, S18, S24	ADR report + ONS SRS metadata + gov.uk guidance (7 named datasets) + criminal-courts doc.	High	Breadth of cross-domain linkage.	—
C04	The cross-justice dataset is a Splink-generated person-link <i>lookup table</i> , not the underlying interaction records.	CONFIRMED	S07, S08	ONS SRS + ADR catalogue metadata.	Medium-High	Distinguishes identity key from case data.	Verify wording verbatim.
C05	Data First includes OASys data (1,100+ variables, incl. DV / sexual-offending assessments).	CONFIRMED	S06	ADR UK annual-report description.	Medium-High	OASys fields likely Art. 9 + Art. 10 data.	Confirm field list verbatim (FOI/manual).
C06	Data First data is de-identified and accessed by accredited researchers via ONS SRS (Five Safes; DEA 2017) and SAIL Databank.	CONFIRMED	S06, S11, S30, S31, S33	ADR + gov.uk + ONS SRS policy + SAIL governance.	High	Five Safes governance; re-identification risk.	—

C07	A MoJ↔DfE (education / National Pupil Database) data-share exists, accessed via ONS SRS.	CONFIRMED	S06, S18, S23	ADR report + gov.uk page + existence of MoJ-DfE privacy notice (2025-10).	Medium-High	Cross-departmental linkage beyond justice.	Read S23 PDF for datasets + legal gateway.
C08	NHS England is building a Splink-based probabilistic linkage service (Data Linkage Hub), using PDS as the spine.	CONFIRMED	S13, S41	NHS England Data Science site + IJPDS pipeline paper.	Medium-High	Extends Splink into health data.	Confirm production-vs-pilot (FOI).
C09	ONS used Splink to link Census 2021 → PDS (assigning NHS numbers; feeding the Public Health Data Asset).	CONFIRMED	S14	ONS Census→PDS methodology report.	High	Health-identifier assignment from a census.	Confirm PHDA downstream use + retention.
C10	UK GDPR special-category processing requires BOTH an Art. 6 basis AND an Art. 9 condition (+ DPA 2018 Sch. 1 where relevant).	CONFIRMED	S15, S16, S37	ICO guidance + DPA 2018 Sch. 1 text.	High	Core compliance test for OASys / health linkage.	— (DUAA 2025 left the dual test intact).
C11	A DPIA was completed for the Data First programme.	CONFIRMED	S19	Algorithmic Transparency Record states a DPIA was completed.	Medium-High	Art. 35 accountability.	Obtain the DPIA itself (→ C11b).
C11b	The Data First DPIA is published (in full or redacted form).	UNKNOWN	—	Not located in the public record.	—	Art. 5(2)/35 transparency.	FOI-1 §1 to MoJ.
C12	A documented individual opt-out from inclusion in Data First linkage.	UNKNOWN	—	Not located. The MoJ Data First guidance page (S18) mentions no opt-out; the sibling BOLD notice (S22) offers none either. NHS NDOO (S28) applies to s.251 research linkage only.	—	Arts. 21/18; sectoral opt-out.	FOI-1 §2 (MoJ); confirm NDOO scope for NHS Hub.
C13	Data First linkage outputs are used for research/statistics only — not operational decision-making about individuals.	CONFIRMED	S19	ATRS: linkage "not for operational decision-making"; "not integrated into a decision-making process."	Medium-High	Purpose limitation 5(1)(b); Art. 22A.	Confirm no downstream operational re-use (FOI).
C14	Published programme-specific false-positive/negative rates and an individual remedy for mis-linkage.	UNKNOWN	—	Splink <i>capability</i> to measure error is documented (S26); ATRS notes manual sample review + bias work (S19); programme-specific published rates/remedy not located.	—	Accuracy 5(1)(d); rectification Art. 16.	FOI-1 §6 : published rates + correction process.

C15	DUAA 2025 replaced UK GDPR Art. 22 with Arts. 22A–22D (in force 5 Feb 2026). Under Art. 22B, solely-automated significant decisions based wholly/partly on special-category data are prohibited (narrow exceptions, e.g. explicit consent); for ordinary personal data the former blanket bar is relaxed (restricted mainly where relying on the new Art. 6(1)(ea) basis, with Art. 22C safeguards).	CONFIRMED	S42, S43, S44, S35	Act + UK GDPR Arts. 22A (definitions) & 22B (operative restriction) on legislation.gov.uk; ICO summary.	High	Sensitive (OASys/health) linkage retains strong protection; relaxation is for ordinary data.	Confirm exact 22B exceptions + Art. 6(1)(ea) wording if it becomes load-bearing.
C16	The DPA 2018 Sch. 1 Pt 1 "Research etc." condition now references UK GDPR Art. 84B (formerly Art. 89(1)), per DUAA 2025; para 4 itself does not require an appropriate policy document.	CONFIRMED	S37	Current revised DPA 2018 Sch. 1 text on legislation.gov.uk.	High	Identifies the live research safeguard + accountability boundary.	—
C17	The ONS Census→PDS linkage relies on the Statistics and Registration Service Act 2007 (with DEA 2017 governing SRS access) as its legal gateway.	LIKELY	(search-derived; not in S14)	Search results cite SRSA 2007 ss.43–44 + DEA 2017, but the S14 methodology report does NOT state the gateway, and the ONS source pages that do are bot-blocked.	Low-Medium	Statutory basis for assigning NHS numbers.	FOI-3 §2 or browser-verify ONS PDS source pages; do not assert as CONFIRMED.
C23	DUAA 2025's Art. 6(1)(ea) "recognised legitimate interests" (Annex 1) include national security/defence, crime (detect/investigate/prevent; apprehend/prosecute offenders), emergencies, and safeguarding.	CONFIRMED	S49	UK GDPR Annex 1 on legislation.gov.uk.	High	New lawful-basis categories, several justice/crime-shaped; Annex 1 is SoS-amendable.	Read each Annex 1 condition verbatim.
C24	DUAA 2025 amended UK GDPR Art. 14(5) (transparency where data not obtained from the data subject), reworking the exemptions and adding a "make information available publicly" measure.	LIKELY	S50	Current Art. 14 text shows DUAA amendment markers; exact restructuring read summarily.	Medium-High	Governs whether linked individuals must be informed — core transparency point.	VERIFY VERBATIM ; trace effect on research/indirect-collection exemption.

C25	The MoJ also runs BOLD (Better Outcomes through Linked Data), a cross-government linkage programme spanning police, CPS, courts, prisons, probation, health & social care, HMRC Child Benefit, and drug-treatment (NDTMS) data across multiple departments.	CONFIRMED	S22	BOLD privacy notice (gov.uk).	High	A second, broader linkage programme involving highly sensitive data.	Obtain BOLD DPIA; confirm production status.
C26	BOLD's stated lawful basis is Art. 6(1)(e) (administration of justice) + Art. 9(2)(h) (health/social care, under Caldicott / IGARD), with no explicit opt-out (access rights via formal request only).	CONFIRMED	S22	BOLD privacy notice.	Medium-High	Shows the MoJ lawful-basis template for linkage; opt-out absent.	Confirm whether Data First uses the same basis (read S20).
C18	DUAA 2025 substituted the old Art. 22 (prohibition-by-default) with a new Section 4A; for ordinary personal data the baseline flips to permitted-unless.	CONFIRMED	S48, S44	legislation.gov.uk substitution note + Art. 22B text.	High	Weakens the default ADM protection for ordinary data.	Confirm consequential edits to Arts. 13–15.
C19	DUAA 2025 added Art. 6(1)(ea) "recognised legitimate interest" (conditions in Annex 1, SoS-amendable).	CONFIRMED	S47	UK GDPR Art. 6 / Art. 6(5) on legislation.gov.uk.	High	New, partly executive-set lawful basis; trigger for the 22B ordinary-data restriction.	Read Annex 1 conditions verbatim.
C20	Art. 22C retains safeguards for permitted automated significant decisions: information, representations, human intervention, ability to contest.	CONFIRMED	S45	UK GDPR Art. 22C text.	High	Core ADM safeguards carried over.	—
C21	Art. 22D empowers the Secretary of State, by regulations (affirmative procedure), to define "meaningful human involvement" / "significant effect" and modify how the 22C safeguards operate.	CONFIRMED	S46	UK GDPR Art. 22D text.	High	Boundaries of the ADM regime are delegated to the executive.	Track any Art. 22D regulations / SIs.

C22	The DUAA ADM reform does not newly authorise the linkage programmes to take automated decisions; special-category solely-automated significant decisions remain prohibited (Art. 22B).	CONFIRMED	S19, S44	ATRS (research-only) + Art. 22B prohibition.	Medium-High	Rebuts any inference the reform "opened a door" for these programmes.	Monitor only (see teardown §6).
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| C27 | Splink is used **operationally** within MoJ (beyond research): the "Splink Master Record" ATR describes a real-time **Core Person Record** (unique IDs across the justice system), **Probation in Court** (retrieving probation records when an individual appears in court), and a **police data-sharing pilot linking to PNC numbers** for arrest-information requests. | CONFIRMED | S51 | MoJ Splink Master Record ATR (gov.uk, 2025-10-06), read 2026-06-10. | High | **Refines C13**: Data First specifically is research-only, but Splink *more broadly* has operational, individual-affecting, police-facing uses. Bears on purpose limitation + (potential) Art. 22A. | Obtain DPIAs for Core Person Record / PNC pilot; confirm whether any solely-automated decision occurs. | | C28 | MoJ's Splink deployment is described as running on **Apache Spark**; **DuckDB is a backend Splink supports generally** but is not evidenced as MoJ's operational engine. | CONFIRMED | S51, S25 | gov.uk publication names Spark/PySpark; Splink docs list DuckDB/Spark/Athena backends. | Medium | Clarifies the tech stack; corrects any assumption that a specific deployment uses DuckDB. | — |

| C29 | DPIAs (or DPIA screenings) were **conducted for each Splink use case**, but none is published or linked in the transparency record. | CONFIRMED | S51 | Splink Master Record ATR, read 2026-06-10. | High | Art. 35 accountability done; publication is the gap. | **FOI**: release the Core Person Record + Essex-PNC-pilot DPIAs. | | C30 | The MoJ states Splink **"does not directly make decisions about individuals"**; where it surfaces candidate matches a **human makes the final decision** (human-in-the-loop), with trained staff for manual merges/unmerges. | CONFIRMED | S51 | Splink Master Record ATR. | High | **Art. 22A solely-automated decision-making not engaged** on the MoJ's own account. | Confirm this holds for the daily PNC share specifically. | | C31 | The **Essex / North Essex Probation PNC pilot** sends PNC numbers to police **daily**; the ATR does **not** state whether a human checks before each share or what police do with the data. | CONFIRMED (daily share) / UNKNOWN (human-check, onward use) | S51 | Splink Master Record ATR. | High (share) | Operational police data flow about supervised individuals. | **FOI**: pre-share human review? onward police use? error handling? | | C32 | The operational probation↔police linkage likely relies on **DPA 2018 Part 3** (law-enforcement processing), with HMPPS a "competent authority" and MoJ as controller. | LIKELY | S52, S53 | HMPPS/NPS privacy notices (liveness to checker-verify; full text unread). | Medium-High | Part 3 (not UK GDPR) governs; different rights regime. | Confirm verbatim + for the specific use case (FOI). |

| C33 | The DWP's own fairness analysis (Feb 2024) found **statistically significant bias** in its ML tool that flags Universal Credit claimants for fraud — disparity by **age, disability, marital status, nationality** (race/sex not analysed). Human caseworkers review (not solely-automated). | CONFIRMED | S54 | Computer Weekly, read 2026-06-11; 11-page assessment released under FOI to the Public Law Project. | High | Equality Act / Art. 5(1)(a) fairness; algorithmic bias in a benefits context. | Obtain the assessment + the un-analysed characteristics (race/sex) via FOI. | | C34 | The MoJ is developing a **"Homicide Prediction Project"** to predict who will commit murder, using **PNC + Greater Manchester Police data (100k–500k people)**, MoJ datasets, and **health markers** (mental health, addiction, self-harm, disability); it covers suspects, **victims, witnesses and safeguarding cases**. | CONFIRMED | S55 | Statewatch, read 2026-06-11; obtained the DPIA + GMP data-sharing agreement via FOI. | High | Profiling (Art. 22A-adjacent); special-category health data; proportionality; inclusion of non-suspects. | Obtain the DPIA + data-sharing agreement; confirm current status/scope. | | C35 | MoJ predictive risk tools (OASys family) have **higher predictive validity for white offenders** than for Black/Asian/Mixed-ethnicity offenders. | LIKELY | S55 (MoJ study to pin) | Cited in Statewatch + secondary reporting; MoJ's own validity study is the primary to cite. | Medium-High | Algorithmic racial bias in justice risk assessment. | Cite the MoJ OASys predictive-validity study directly. | | C36 | The UK Algorithmic Transparency Recording Standard registry holds **~125 published records** (Apr 2026), mandatory for departments; policing largely exempt (only 2 police records). | CONFIRMED | S56 | gov.uk ATRS registry, read 2026-06-11. | High | Transparency baseline; the policing exemption is itself notable. | Mine the registry for further linkage/profiling tools. |

Counts (current): CONFIRMED = 29 · LIKELY = 4 · UNKNOWN = 3 · SPECULATION = 0. (Phase 0 seed: CONFIRMED 10 / UNKNOWN 4. C15–C22 = DUAA teardown; C23–C26 = BOLD sweep; C27–C32 = Splink Master Record operational uses; C33–C36 = algorithmic decision/prediction systems — DWP bias, MoJ homicide prediction, OASys racial bias, ATRS registry.)

C33–C34 are the most concrete findings in this repo. Unlike the transparency gaps elsewhere, here the harm is **documented**: a government body's own analysis admits bias (DWP), and FOI'd primary documents describe a homicide-prediction system built on linked police+health data (MoJ). Still lawful; the case is bias, proportionality, and prediction-without-consent. See `algorithmic_decision_systems.md`.

C27 is the most consequential refinement in this repo. The earlier headline ("Data First is research-only", C13) remains true *for Data First* — but the Splink Master Record ATR shows Splink is also deployed operationally on individuals (real-time identity, court record retrieval, a police/PNC pilot). That is a sourced, material qualification of the "purely research" reassurance, and it is the nearest thing in this project to the operational-use concern — though it is **lawful, published government activity**, not evidence of wrongdoing.

The DUAA teardown is written up in `duaa_adm_teardown.md`. Its one forward-looking concern (the Art. 22D / Annex-1 executive powers as a future re-scoping lever) is recorded there as a **labelled SPECULATION / watch-item**, deliberately kept out of this matrix as a fact.

Note on C13: the Algorithmic Transparency Record is an official MoJ self-disclosure. It is strong primary evidence of *stated* purpose; "Medium-High" reflects that it is the controller's own description, not an independent audit. It is recorded as CONFIRMED for *what the programme states*, with the residual operational-reuse question routed to FOI.

A3. Algorithmic decision & prediction systems (DWP bias; MoJ homicide prediction; OASys)

Algorithmic decision & prediction systems (the on-thesis core)

Where non-consensual linked data stops being "just matching" and becomes **profiling and prediction** about individuals — and where documented **bias** appears. Evidence-graded; non-accusatory. These are, on the public record, lawful — the issue is bias, transparency, and the use of linked data to predict people's behaviour. **CONFIRMED** items were read from the cited source.

C33 — DWP fraud-detection AI: admitted bias (**CONFIRMED** — S54)

The DWP's **own fairness analysis (Feb 2024)** found a **statistically significant** disparity in how its machine-learning tool flags **Universal Credit** claimants for fraud investigation — across **age, disability, marital status and nationality** (race, sex, sexual orientation and religion were **not** analysed). DWP says caseworkers review (so **not solely-automated**). The 11-page assessment was released under FOI to the **Public Law Project**. Campaigners call it "hurt first, fix later." - *Why it matters*: a public body's own analysis admits its anti-fraud AI treats protected groups differently — applied to vulnerable claimants, non-consensually. This is documented bias, not a gap.

C34 — MoJ "Homicide Prediction Project" (**CONFIRMED** — S55)

The MoJ is/was developing a system to **predict who will commit murder**, using **Police National Computer + Greater Manchester Police data (100,000–500,000 people)**, MoJ datasets, and **"health markers"** (mental health, addiction, self-harm, suicide, disability) stated to have *"significant predictive power."* It covers not only suspects but **victims, witnesses, missing people, and safeguarding cases**. Bodies named: MoJ, GMP, Met, West Midlands (in discussion), Home Office. Revealed by **Statewatch via FOI** (DPIA, internal risk assessment, GMP data-sharing agreement obtained). - *Why it matters*: this is the apex of the thesis — **linked police + health + justice data used to profile individuals for future criminality**, sweeping in people who are not even suspects. Lawful, FOI-documented, and exactly the "profiling" harm the consent/transparency questions point at.

C35 — Racial bias in MoJ risk tools (**LIKELY** — S55, MoJ studies to pin)

MoJ's own research indicates predictive tools (OASys family) have **higher predictive validity for white offenders than for Black, Asian and Mixed-ethnicity offenders** — i.e. they "work less well for Black offenders." OASys/OGRS have profiled offenders since ~2001. Critics (Big Brother Watch, RUSI) warn the inputs reflect "institutionally racist" policing data. - *Follow-up*: cite the specific MoJ OASys predictive-validity study directly.

C36 — The disclosed-algorithm catalogue (**CONFIRMED** — S56)

The UK **Algorithmic Transparency Recording Standard** registry holds **~125 published records** (Apr 2026), now mandatory for government departments. Policing is exempt, but two police records exist (Hampshire & Thames Valley **DARAT**; West Midlands sexual-convictions analysis). This is the catalogue to mine for further linkage/profiling tools — and the absence of most policing tools is itself notable.

How this reframes the whole investigation

The original spine was *non-consensual probabilistic matching feeding police*. These findings sharpen it: the same non-consensual linked data is used to **profile and predict** — benefit fraud (DWP, admitted bias), reoffending (OASys, racial bias), and **homicide (the MoJ prediction project)**. That is the strongest, most concrete public-interest case in this repo, because here the harm is **documented** (bias analyses, FOI'd DPIAs), not merely a transparency gap. It remains **lawful**; the argument is **bias, proportionality, and prediction-without-consent** — an ethics/accountability case, well-sourced.

A4. Datasets (DS-01–DS-05)

Datasets

Per-dataset tracking of probabilistic-linkage programmes.

Domain legend: FAM (family courts) · CIV (civil courts) · CRIM (criminal courts) · PRIS (prisons) · PROB (probation) · NHS (health) · MH (mental health) · IMM (immigration) · EDU (education) · DWP (work & pensions) · LA (local authority).

Use mode: RESEARCH (analysis only, de-identified) vs DECISION (affects an individual's treatment/entitlement).

Rights tracked: access (Art. 15), correct (Art. 16), restrict (Art. 18), object (Art. 21), opt-out (sectoral, e.g. National Data Opt-Out). Each field: value + [status] + source.

DS-01 — MoJ Data First, cross-justice linkage

- **Controller / operator:** Ministry of Justice (linkage via Splink). [CONFIRMED S01, S03]
- **Domains covered:** CRIM, CIV, FAM, PRIS, PROB. [CONFIRMED S06, S07]
- **What is linked:** person-link *lookup table* across justice datasets; OASys assessment data (1,100+ vars, incl. DV / sexual-offending). [CONFIRMED S06, S07, S08]
- **Special-category / criminal-offence content:** OASys → likely Art. 9 (health/sex life) and Art. 10 (offences). [LIKELY – to verify against field list, S06]
- **Use mode:** RESEARCH — de-identified, accredited researchers via ONS SRS / SAIL. [CONFIRMED S06, S11]
- **Onward sharing:** MoJ↔DfE (EDU) share via ONS SRS. [CONFIRMED S06]
- **Individual rights (access/correct/restrict/object/opt-out):** [UNKNOWN – C12]
- **DPIA:** a DPIA was **completed** per the Algorithmic Transparency Record. [CONFIRMED S19 – C11]; whether it is **published** is [UNKNOWN – C11b].
- **False-positive/negative handling & remedy:** Splink can measure error (S26) and ATRS notes manual sample review + bias work (S19), but no programme-specific published rates/remedy. [UNKNOWN – C14]
- **Decision-vs-research:** ATRS states **research/statistics only** — "not for operational decision-making". [CONFIRMED S19 – C13]
- **Source refs:** S06, S07, S08, S11, S18, S19, S20, S21, S22, S23, S24. (S05 retired; S09/S10/S12 superseded.)

DS-02 — NHS England Data Linkage Hub

- **Controller / operator:** NHS England (Data Science). [CONFIRMED S13]
- **Domains covered:** NHS (+ potentially MH, LA — to confirm). [CONFIRMED NHS S13; others UNKNOWN]
- **What is linked:** probabilistic linkage service across NHS datasets (Splink-based). [CONFIRMED S13]
- **Special-category content:** health data → Art. 9 throughout. [LIKELY S13]
- **Use mode:** [UNKNOWN – production vs pilot – C08]
- **Individual rights / National Data Opt-Out applicability:** NDOO applies to s.251 research linkage but not where another basis applies (S28); applicability to the Hub specifically [UNKNOWN – C12].
- **DPIA / transparency notice published:** Hub-specific [UNKNOWN – C11b]; note a **published** NHS England DPIA exists for the adjacent **Federated Data Platform** (S40) — relationship to confirm.
- **False-positive/negative handling & remedy:** [UNKNOWN – C14]
- **Source refs:** S13, S41 (IJPDS pipeline), S40 (FDP DPIA, adjacent), S28 (NDOO).

DS-03 — ONS Census 2021 → Personal Demographics Service (PDS) linkage

- **Controller / operator:** Office for National Statistics. [CONFIRMED S14]
- **Domains covered:** Census (whole-population) → NHS (identifier). [CONFIRMED S14]

- **What is linked:** Census 2021 records to PDS to assign NHS numbers; feeds the Public Health Data Asset (PHDA). [CONFIRMED S14]
- **Special-category content:** assigns a health identifier; census includes Art. 9 fields. [LIKELY S14]
- **Use mode:** RESEARCH / statistics (PHDA). [LIKELY S14 – confirm downstream]
- **Legal gateway:** Statistics and Registration Service Act 2007 (ss. 43–44); DEA 2017 for SRS access; ONS Art. 9 condition for statistics. [LIKELY S14, S38 – confirm exact sections – C17]
- **Individual rights / opt-out:** census-statistics use is an explicit exclusion from the NHS NDOO (S28 context); ONS-specific opt-out [UNKNOWN – C12].
- **DPIA published:** [UNKNOWN – C11b]
- **Source refs:** S14, S38.

DS-05 — MoJ BOLD (Better Outcomes through Linked Data)

- **Controller / operator:** Ministry of Justice (BOLD Partnership). [CONFIRMED S22]
- **Domains covered:** CRIM, PRIS, PROB, NHS, MH, LA, drug treatment (NDTMS), HMRC Child Benefit; departments incl. MoJ, MHCLG, DHSC, Welsh Government, YJB, NHS England, HMPPS, local authorities. [CONFIRMED S22]
- **What is linked:** police, CPS, courts, prisons, probation, health & social care, HMRC Child Benefit, NDTMS drug-treatment records. [CONFIRMED S22]
- **Special-category content:** health/social care under **Art. 9(2)(h)**, Caldicott Principles + Caldicott Guardian sign-off + NHS IGARD approval. [CONFIRMED S22]
- **Lawful basis:** Art. 6(1)(e) "common law powers for the administration of justice"; consent / public-interest / legal-power bases also cited. [CONFIRMED S22]
- **Use mode:** RESEARCH / public-good linkage. [LIKELY S22 – confirm no operational use]
- **Individual rights / opt-out:** no explicit opt-out; access rights via formal request only. [CONFIRMED S22]
- **DPIA published:** [UNKNOWN – FOI]
- **Source refs:** S22. **Note:** broader/more sensitive than Data First (adds health, drug-treatment, child-benefit, police/CPS) — a primary disclosure target in its own right.

DS-04 — MoD Veterans' Card (decision-affecting CONTRAST CASE)

- **Why here:** included as an explicit *contrast* — a known decision/entitlement-affecting identity-verification context — to keep the research-vs-decision distinction sharp. **Not yet sourced in this repo.** [UNKNOWN – needs primary source before any claim]
- **Domains:** IMM/identity, veterans' services. [UNKNOWN]
- **Use mode:** DECISION (entitlement/eligibility). [SPECULATION until sourced]
- **Source refs:** none yet — Phase 2 search target.

Nothing in DS-04 may be stated as fact until a working primary source is recorded in `raw_links.json`. It exists now only to anchor the decision-vs-research axis.

Teardown: DUAA 2025 and the automated-decision regime (UK GDPR Art. 22 → 22A–22D)

*Forensic read of the primary statutory text on legislation.gov.uk, fetched 2026-06-10. Evidence-first and non-accusatory: this pulls apart **what the law does**, separating verified text from inference and from labelled hypothesis. It is a teardown of the **law**, not of any specific programme — see §6 for the (limited) bearing on the linkage targets.*

Sources: S42 (Act), S43 (Art 22A), S44 (Art 22B), S45 (Art 22C), S46 (Art 22D), S47 (Art 6/6(1)(ea)), S48 (Art 22 substitution note), S35 (ICO summary).

1. The structural move (CONFIRMED — S48, S42)

The old **Art. 22** ("Automated individual decision-making, including profiling") was not edited — it was **substituted wholesale** by a new **Chapter 3, Section 4A** = Arts. 22A–22D. In force 19 Jun 2025 (specified purposes) / **5 Feb 2026** (broadly). Consequential changes to Arts. 4, 13, 14, 15 are flagged as still rolling through. So this is a replacement of the architecture, not a tweak.

2. The default inversion — the core of it (CONFIRMED — S44, S48)

- **Before:** Art. 22(1) gave a *right not to be subject* to a solely-automated significant decision — **prohibition by default**, with narrow exceptions (contract / authorised by law / explicit consent).
- **After (ordinary personal data):** Art. 22B does **not** restate that general right. A solely- automated significant decision is now **permitted**, and only *restricted* where the processing relies on the new **Art. 6(1)(ea)** basis — subject to the Art. 22C safeguards.
- **After (special-category data):** Art. 22B **keeps a near-prohibition** — banned unless explicit consent, or contract/legal necessity with an Art. 9(2)(g) substantial-public-interest condition.

Net: for *ordinary* data the baseline flips from "*forbidden unless*" to "*allowed unless*." For *special-category* data the strong bar survives. This is the single most consequential change.

3. The new lawful basis that 22B hinges on (CONFIRMED — S47, S49)

Art. **6(1)(ea)** — "*processing is necessary for the purposes of a recognised legitimate interest*." Per Art. 6(5), it applies only if it meets a condition in **Annex 1**, and the **Secretary of State may amend Annex 1 by regulations**. So both the trigger for the ordinary-data ADM restriction (reliance on 6(1)(ea)) **and** the content of that basis are partly executive-set.

Annex 1 categories (CONFIRMED — S49): disclosure for an Art. 6(1)(e) public-task purpose; **national security / public security / defence**; **emergencies** (Civil Contingencies Act 2004); **crime** ("detecting, investigating or preventing crime", apprehending/prosecuting offenders); and **safeguarding vulnerable individuals**. Several are justice/crime-shaped — relevant context for a justice-data ecosystem, though a *lawful basis* is not by itself a power to do anything new.

3a. Transparency duty also moved — Art. 14 (LIKELY — S50)

The duty to inform people whose data was obtained **indirectly** (Art. 14 — i.e. essentially everyone inside a linkage) was **amended by DUAA 2025**. The Art. 14(5) exemptions were reworked (impossible / disproportionate effort; "likely to render impossible or seriously impair the achievement of the objectives") with a new "make the information available publicly" measure. The exact fate of the research/indirect-collection exemption needs **verbatim** confirmation. This is the provision that governs whether linked individuals must be told at all — directly material to the transparency gap.

4. The safeguards that remain (CONFIRMED — S45)

Where a solely-automated significant decision **is** permitted, Art. 22C requires the controller to: (a) **inform** the data subject; (b) enable them to make **representations**; (c) enable **human intervention**; (d) enable them to **contest** the decision. These are the familiar Art. 22(3)-style protections, **carried over**.

5. The delegated power — the civil-liberties pressure point (CONFIRMED — S46)

Art. 22D lets the **Secretary of State by regulations**: - provide whether there **is or is not "meaningful human involvement"** in a given decision type; - determine whether a decision has a **"similarly significant effect"**; - **add to / modify how the 22C safeguards operate**, including defining measures that do **not** satisfy them. Checks: **affirmative resolution** (Parliament must approve), and 22D(4) bars the SoS from directly amending 22C itself. But the *boundaries* of the whole regime — what counts as "human involvement" and "significant" — are now **set by ministerial regulation**, not on the face of the Act.

6. Bearing on the linkage investigation — honest verdict

- **No new authorisation for the linkage programmes.** Data First is research-only per its Algorithmic Transparency Record (S19); it does not take automated decisions about individuals, so 22A–22D barely engages it. (CONFIRMED negative finding — S19, S44.)
- **The sensitive material is still protected.** If any programme *did* use special-category data (e.g. OASys) for a solely-automated significant decision, Art. 22B **prohibits** it. The reform did **not** open that door. (CONFIRMED — S44.)
- **What is a legitimate watch-item (LABELLED HYPOTHESIS — SPECULATION):** the Art. 22D regulation power and the SoS-amendable Annex 1 (6(1)(ea)) are *general* levers that could, in future, be used to re-scope ADM protections across government — including contexts that touch linked data. There is **no evidence** any such regulation targets these programmes; recording this only as a thing to monitor, explicitly **not** as a claim of intent. Follow-up: track DUAA commencement/Annex 1 SIs.

7. What I have NOT verified (limits)

- The exact wording of the 22B special-category exceptions and the full Annex 1 conditions (read summarily, not clause-by-clause) — confirm verbatim before any load-bearing legal use.
- The precise list of consequential amendments to Arts. 13–15 (transparency duties) under DUAA — potentially relevant to the Art. 14 "right to be informed" questions in `legal_questions.md`.

A6. Legal questions

Legal questions (neutral)

Open, non-accusatory questions framed against UK GDPR and the Data Protection Act 2018. These are *questions to answer with sources*, not allegations. Statutory references must be checked against current text on legislation.gov.uk before any answer is recorded as CONFIRMED.

DUAA 2025 baseline (verified, S37/S42/S43): in force 5 Feb 2026 — UK GDPR **Art. 22** → **Arts. 22A–22D** (automated significant decisions), research safeguard **Art. 89(1)** → **Art. 84B**. Questions below are framed in the post-DUAA numbering.

A. Lawful basis — Article 6

- A1. Which Art. 6(1) basis does each programme rely on for linkage (likely (e) public task)? [UNKNOWN]
- A2. Where is that basis published (privacy notice / DPIA)? [UNKNOWN → C11]

B. Special-category & criminal-offence data — Articles 9 & 10

- B1. For OASys-derived fields, which Art. 9(2) condition applies (e.g. (j) research/statistics)? [UNKNOWN]
- B2. Which DPA 2018 Sch. 1 condition (and appropriate-policy-document) supports it? [UNKNOWN]
- B3. For criminal-offence data (Art. 10), what is the official authority / Sch. 1 basis? [UNKNOWN]
- B4. For NHS / Census→PDS health data, which Art. 9 condition is relied on? [UNKNOWN]
- B5. Where a research/statistics Art. 9 condition (DPA 2018 Sch. 1 Pt 1 para 4) is used, the safeguard is now **Art. 84B** (not Art. 89(1)); para 4 itself needs no appropriate policy document. [CONFIRMED S37 → C16]
- Reference: special-category processing needs **both** Art. 6 and Art. 9 (+ Sch. 1). [CONFIRMED S15,S16,S37 → C10]

C. Fairness & transparency — Articles 5(1)(a), 13, 14

- C1. Is there an Art. 14 transparency notice for data obtained indirectly (i.e. not from the data subject), and is a research exemption (DPA 2018 s.14 / Art. 14(5)(b)) relied on? [UNKNOWN]
- C2. How are data subjects informed their justice/health records are linked? [UNKNOWN]

D. Purpose limitation — Article 5(1)(b)

- D1. Is linkage use confined to the stated research purpose, or re-used for other purposes? Data First's ATRS states research/statistics only, "not for operational decision-making" [CONFIRMED for stated purpose, S19 → C13]; absence of operational *re-use* [UNKNOWN – FOI].

E. Data minimisation & accuracy — Articles 5(1)(c) & 5(1)(d)

- E1. Are only the fields needed for linkage processed (vs full OASys 1,100+ vars)? [UNKNOWN]
- E2. What are the published match-error rates, and how is accuracy assured? [UNKNOWN → C14]

F. Individual rights — Articles 15–22 (incl. opt-out & Art. 22)

- F1. How can an individual exercise access / rectification / restriction / objection over linked data? [UNKNOWN → C12]
- F2. Does an opt-out exist (programme-specific or National Data Opt-Out for NHS)? [UNKNOWN → C12]
- F3. Do linkage outputs feed any solely-automated significant decision (now **Art. 22A**)? Data First's ATRS says outputs are research-only and "not integrated into a decision-making process" [CONFIRMED S19 → C13], so Art. 22A is unlikely engaged for Data First; verify for NHS Hub / any operational re-use. [UNKNOWN]

G. Accountability — Articles 5(2), 35, 30

- G1. Has a DPIA been completed and (partly) published for each programme (Art. 35)? Data First DPIA **completed** per ATRS [CONFIRMED S19 → C11]; **publication** [UNKNOWN → C11b]. NHS England publishes an FDP DPIA [CONFIRMED S40] (relationship to the Hub to confirm).
- G2. Is the processing in the controller's Art. 30 Record of Processing Activities? [UNKNOWN]

H. Oversight & litigation

- H1. Any First-tier Tribunal (Information Rights) decisions on Data First FOI requests? [UNKNOWN – Phase 2 search #18]
- H2. Any judicial review touching govt administrative-data linkage under UK GDPR? [UNKNOWN – search #19]
- H3. Has NSDEC (National Statistician's Data Ethics Advisory Committee) reviewed these? [UNKNOWN – search #20]
- H4. What is the Caldicott Guardian / National Data Guardian role for the NHS linkage? [UNKNOWN]

A7. Timeline

Timeline

Dated events relevant to UK public-sector probabilistic linkage. Only dated, sourced events belong here. Undated items stay in `open_questions.md` until a date is sourced.

Date	Event	Status	Source	Follow-up
2022	Splink described in peer-reviewed paper (IJPDS v7n3) as MoJ's open-source probabilistic linkage library.	CONFIRMED	S03	Confirm exact publication month in Phase 2.
2022	MoJ publishes "Data First: Criminal Courts linked data" documentation.	CONFIRMED (pre-flag STALE?)	S12	Re-verify URL liveness (legacy gov.uk asset).
2023	ONS publishes Census 2021 → PDS linkage methodology report.	CONFIRMED	S14	Confirm exact date; trace PHDA downstream use.
2023–2024	ADR UK Annual Report documents MoJ Data First Cross-Justice System dataset (E&W).	CONFIRMED	S06	—
2024	ONS SRS metadata catalogues Data First dataset 58617.	CONFIRMED	S07	Confirm catalogue entry date.
2025-08	gov.uk guidance "Access HMCTS data for research" current/updated.	CONFIRMED	S11	Confirm "last updated" date string.
2025-10	MoJ–DfE data-share privacy notice document created.	CONFIRMED	S23	Read PDF for datasets + legal gateway.
2024-12-17	MoJ publishes Algorithmic Transparency Record for Data First (Splink) v3.0; states research-only + DPIA completed.	CONFIRMED	S19	—
2025-06-19	DUAA 2025 Arts. 22A–22D commence "for specified purposes".	CONFIRMED	S43	—
2026-02-05	DUAA 2025 fully in force: UK GDPR Art. 22 → Arts. 22A–22D; Art. 89(1) → Art. 84B.	CONFIRMED	S37, S42, S43	Rebase all statutory cites.
2026-02-05	DUAA 2025: Art. 6(1)(ea) + Annex 1 (recognised legitimate interests) in force.	CONFIRMED	S47, S49	Read Annex 1 verbatim.
2026-02-05	DUAA 2025 amendments to Art. 14 (indirect-collection transparency) in force.	LIKELY	S50	Verify verbatim.
2026-03-23	ICO updates purpose-limitation guidance to reflect DUAA 2025.	LIKELY	S35	Confirm exact date on page.
UNKNOWN	Data First DPIA <i>published</i> (completion confirmed; publication not).	UNKNOWN	—	FOI (C11b).
UNKNOWN	NHS England Data Linkage Hub production go-live (vs pilot).	UNKNOWN	—	FOI (C08).

Several seed sources are undated on-page (Splink repo/docs, ADR UK project page, ICO guidance). They are recorded without a timeline date and flagged UNCLEAR for currency.

A8. Open questions

Open questions (prioritised)

Updated end of Phase 3. Each question is tagged with how it can now be answered: **[FOI-ONLY]** (no public source exists — needs a statutory request) · **[DOC-READ]** (answer likely sits in a source we already hold — read it, no FOI needed) · **[VERIFY]** (confirm/upgrade an existing LIKELY claim against primary text).

Priority: **P1** = core to the four project questions; **P2** = important context; **P3** = secondary.

P1 — the three live UNKNOWNs (the real FOI core)

- **P1-a [FOI-ONLY] — Publish the DPIA.** The Data First Algorithmic Transparency Record (S19, 17 Dec 2024) states a DPIA **was completed**. The DPIA document itself is not in the public record. (C11b) → **FOI-1 §1** to MoJ: release the completed DPIA (redacted if necessary).
- **P1-b [FOI-ONLY] — Individual opt-out / objection.** No documented route for an individual to opt out of, or object to, inclusion of their records in Data First linkage. The NHS National Data Opt-Out (S28) covers s.251 research linkage, not MoJ research bases or ONS statutory linkage. (C12) → **FOI-1 §4** (MoJ) and a scope question to NHS England (NDOO ↔ Data Linkage Hub).
- **P1-c [FOI-ONLY] — Published match-error rates + a remedy.** Splink *can* measure false-positive/ negative rates (S26) and the ATRS notes manual sample review and bias work (S19), but no programme-specific published rates and no described remedy for an individual who is mis-linked. (C14) → **FOI-1 §6** (MoJ) and equivalents to NHS England / ONS.

P1 — now answerable WITHOUT FOI (close these first)

- **P1-d [DOC-READ] — Data First lawful basis (Art. 6) and Art. 9/10 + Sch. 1 conditions.** Almost certainly stated in the privacy statement (S20) — but S20 is a binary/image PDF not yet text-read. → Read S20 (and BOLD notice S22) before escalating to FOI.
- **P1-e [DOC-READ] — MoJ↔DfE share specifics.** Datasets, purpose and legal gateway are likely in the MoJ–DfE privacy notice (S23, created 2025-10) — also a binary PDF needing manual read. (C07)

P2 — important context

- **P2-a [DOC-READ] — OASys field inventory:** which fields are Art. 9 / Art. 10. Likely in S20 / the user guide S21 / dataset metadata S07. (C05)
- **P2-b [FOI-ONLY] — NHS Data Linkage Hub production status** (pilot vs live), datasets, controller, and its relationship to the Federated Data Platform DPIA (S40). (C08)
- **P2-c [VERIFY] — ONS Census→PDS legal gateway:** confirm SRSA 2007 ss. 43–44 (and DEA 2017 for SRS) verbatim in S14 / PDS source pages. (C17)
- **P2-d [FOI-ONLY] — PHDA downstream:** uses and retention of the linked Public Health Data Asset. (C09)
- **P2-e [VERIFY] — Five Safes / accreditation** controls for ONS SRS (S30/S31) and SAIL (S33).

P1/P2 — added in the completion sweep

- **[FOI-ONLY] — BOLD DPIA + opt-out + status.** The broader MoJ BOLD programme (health, drug- treatment, child-benefit, police/CPS) has no published DPIA or opt-out located. (C25/C26) → FOI-5.
- **[VERIFY] — Art. 14 transparency amendment.** Confirm verbatim how DUAA 2025 reworked Art. 14(5) and what remains of the indirect-collection/research exemption (governs whether linked individuals must be told). (C24)
- **[VERIFY] — Annex 1 conditions.** Read each Art. 6(1)(ea) "recognised legitimate interest" condition verbatim (esp. the crime and safeguarding limbs). (C23)

P3 — secondary

- **P3-a [VERIFY] — FTT (Information Rights):** confirm absence of any Data First decision via the tribunal database directly (Phase 1 found none). (H1)
 - **P3-b [VERIFY] — Judicial review:** no JR on these linkages; adjacent precedent exists (immigration-exemption challenge; *De'lo v IC*). Context only. (H2)
 - **P3-c [DOC-READ] — NSDEC minutes (S39)** for any review of justice/health linkage. (H3)
 - **P3-d [FOI-ONLY] — DS-04 contrast case:** still needs a sourced decision-affecting example before any claim; do not assert.
 - **P3-e [VERIFY] — Splink licence + maintained version.** (C01)
-

Summary: what is now FOI-ONLY vs closeable by reading

- **FOI-ONLY (5):** P1-a (publish DPIA), P1-b (opt-out), P1-c (error rates+remedy), P2-b (NHS Hub status), P2-d (PHDA downstream).
- **Closeable by DOC-READ / VERIFY (8):** P1-d, P1-e, P2-a, P2-c, P2-e, P3-a, P3-c, P3-e.

The four-question project framing now reduces to one sentence: *the what / by whom / legal basis / safeguards are largely sourced; the residual gaps are publication of the DPIA, an individual opt-out, and published mis-linkage error rates + remedy — all transparency/recourse questions.*

FOI request drafts

Non-accusatory, specific information requests under the Freedom of Information Act 2000 (documents framed as transparency requests for personal-data handling). Tone: neutral public-interest — each asks for documents/facts, not justifications, and is narrowed (post-Phase 3) to the genuine gaps so it survives the s.12 cost limit.

Before sending: confirm the current FOI contact from each body's official page. For MoJ, the Data First team address datafirst@justice.gov.uk is published (S18) but FOI should go via the MoJ FOI route. Cite the specific documents we already have so the request is precise.

FOI-1 — Ministry of Justice (Data First)

Subject: Data First linked-data programme — DPIA, opt-out, and linkage accuracy

Context I can already cite: the Algorithmic Transparency Record for "MoJ: Data First (Splink)" (published 17 December 2024) states that a Data Protection Impact Assessment **was completed** and that the datasets are for research/statistics and "not for operational decision-making".

1. **Please release the completed DPIA** referenced in that Algorithmic Transparency Record, in full or with necessary redactions. (C11b)
2. Please confirm **how an individual can opt out of, or object to, inclusion** of their records in Data First linkage, and provide any policy describing that process; if there is no opt-out, please confirm that and the basis on which Article 21 objections are handled. (C12)
3. Please provide any **evaluation of linkage accuracy** — published or internal — including false-match and missed-match rates for the Data First linkage, and describe the **process for correcting an erroneous link** that affects an individual. (C14)
4. Please confirm whether Data First linkage outputs are ever **re-used for any purpose other than accredited research/statistics**, including any operational use. (purpose limitation; complements C13)
5. For OASys-derived data, please state the **Article 9 condition and Article 10 / DPA 2018 Schedule 1 basis**, and provide the appropriate policy document if one applies. (C05, B-block)

Already sourced (do NOT ask): that Splink is MoJ open-source (S01/S03); the cross-justice scope (S06/S07); de-identified SRS/SAIL access (S06/S11/S30/S31/S33); research-only use (S19).

FOI-2 — NHS England (Data Linkage Hub)

Subject: Data Linkage Hub — status, governance, and opt-out scope

1. The current **production status** of the Data Linkage Hub (pilot vs operational), the datasets in scope, and the data controller(s). (C08, P2-b)
2. Any **DPIA / transparency notice for the Data Linkage Hub specifically**, and its relationship to the published Federated Data Platform DPIA (we already hold the FDP DPIA, S40). (C11b)
3. The **Article 6 basis and Article 9 condition** for the Hub's linkage, and the Caldicott Guardian / National Data Guardian role in its governance. (B4, H4)
4. Whether and how the **National Data Opt-Out applies** to processing by the Hub. (C12)
5. Any published **linkage-accuracy metrics** and the **mis-linkage correction process**. (C14)

FOI-3 — Office for National Statistics

Subject: Census 2021 → PDS linkage and the Public Health Data Asset

1. Any **DPIA** for the Census 2021 → PDS linkage and the Public Health Data Asset (PHDA). (C11b)
2. Confirmation of the **legal gateway** (we believe Statistics and Registration Service Act 2007, ss. 43–44, with DEA 2017 for SRS access) and the **Article 9 condition** relied on. (C17, B4)
3. Whether and how individuals can **opt out** of this linkage (noting census-statistics use is an exclusion from the NHS National Data Opt-Out). (C12)
4. Published **downstream uses and retention period** of the linked PHDA. (C09, P2-d)

FOI-5 — Ministry of Justice (BOLD)

Subject: Better Outcomes through Linked Data (BOLD) — DPIA, scope, opt-out

The BOLD privacy notice (gov.uk) confirms linkage across police, CPS, courts, prisons, probation, health & social care, HMRC Child Benefit and drug-treatment (NDTMS) data, on an Art. 6(1)(e) + Art. 9(2)(h) basis, with no stated opt-out.

1. Please release any **DPIA(s)** for BOLD (in full or redacted). (C25)
2. Please confirm BOLD's **current status**, the full list of datasets/departments, and the data controller(s). (C25)
3. Please confirm whether an individual can **opt out of or object to** inclusion in BOLD. (C12)
4. Please confirm whether BOLD outputs are **research-only** or inform any decision about an individual. (decision-vs-research)
5. Please provide any **linkage-accuracy** evaluation and the **mis-linkage correction** process. (C14)

FOI-6 — Ministry of Justice (Splink operational use: Core Person Record & PNC pilot)

Subject: Operational Splink use — DPIAs, lawful basis, and the probation→police PNC pilot

Context I can cite: the MoJ "Splink Master Record" Algorithmic Transparency Record (published 6 Oct 2025) states DPIAs/DPIA screenings were conducted for each Splink use case; that Splink "does not directly make decisions about individuals" (human makes the final decision); and that, in a North Essex pilot, PNC numbers for probation-supervised individuals are sent to police daily.

1. Please **release the DPIA(s)** for (a) the **Core Person Record** and (b) the **North Essex Probation → police PNC pilot**, in full or redacted. (C29)
2. Please state the **data controller** and the **lawful basis** for each (UK GDPR and/or DPA 2018 Part 3 law-enforcement processing), with the Part 3 / Schedule conditions relied on. (C32)
3. For the PNC pilot: is there **human review before each daily share**, what do police do with the numbers, and what is the **process to correct a wrongful match** affecting an individual? (C31)
4. Please confirm whether **any solely-automated significant decision** (UK GDPR Art. 22A / DPA Part 3) is taken on the basis of a Splink match, and the safeguards. (C30)
5. Please confirm how individuals are **informed** their records are linked across DELIUS/NOMIS/ Common Platform/LIBRA/FamilyMan/CaseMan (Art. 14 / Part 3 equivalent), and any opt-out/objection. (C12)

Already sourced — do NOT ask: that Splink is used operationally (Core Person Record, Probation in Court, PNC pilot) and that DPIAs were conducted (S51).

FOI-4 — ADR UK

Subject: Governance of the Data First / cross-justice linkage data

1. The **public-benefit and ethics assessment** applied to Data First (beyond the published ethics page S32). (P2)
2. Any **DPIA or data-sharing agreement** ADR UK holds for the cross-justice dataset. (C11b)
3. Documentation of the **MoJ↔DfE share** and its legal gateway (complements the MoJ–DfE privacy notice S23). (C07)

All four ask for documents and facts, citing what is already public so the scope is tight and the tone neutral. The strongest, narrowest single ask is **FOI-1 §1 — release the DPIA that the government's own transparency record**

says exists. That is the cleanest test of transparency and requires no allegation of any kind.

A10. Source table

Master source table

Flags (re-verified by scripts/source_checker.py): **LIVE** · **STALE?** (pre-flagged, re-check) · **UNCLEAR** · **DEAD**. Type: splink-core · data-first · ons-adruk · nhs · ico-law. All "Accessed" = first verification date; re-run the checker to refresh.

#	Title	Publisher	Pub date	URL	Accessed	Type	Flag
S01	Splink (repository)	MoJ Analytical Services	—	https://github.com/moj-analytical-services/splink-core	2026-06-10	splink-core	LIVE
S02	Splink documentation	MoJ Analytical Services	—	https://moj-analytical-services.github.io/splink-core/index.html	2026-06-10	splink-core	LIVE
S03	Splink: MoJ's open source library for probabilistic record linkage at scale (IJPDS v7n3)	IJPDS	2022	https://ijpds.org/article/2022-07-20	2026-06-10	splink-core	LIVE
S04	MoJ Analytical Services (GitHub org)	Ministry of Justice	—	https://github.com/moj-analytical-services	2026-06-10	splink-core	LIVE
S05	Data First overview (ADR UK project page)	ADR UK	—	https://www.adruk.org/2026-06-10/rowse-all-projects/data-first-....169	2026-06-10	data-first	RETIRED (404 x3; → S18/S32)
S06	MoJ Data First Cross-Justice System (E&W) — Annual Report 2023-24	ADR UK	2024	https://reports.adruk.org/2026-06-10/report-2023-2024/adruk-data/new-and-emerging-datasets/ministry-of-justice	2026-06-10	data-first	LIVE
S07	Dataset 58617 metadata	ONS SRS Metadata	2024	https://ons.metadataservice.gov.uk/dataset/58617	2026-06-10	ons-adruk	LIVE
S08	Dataset 58617 (ADR UK Data Catalogue)	ADR UK	—	https://datacatalogue.adruk.org/2026-06-10/browser/datasets/58617/1	2026-06-10	ons-adruk	LIVE
S09	Data First privacy statement	MoJ (gov.uk asset)	—	https://assets.publishing.service.gov.uk/government/uploads/system/uploads/attachment_data/file/984	2026-06-10	data-first	STALE?
S10	Data First user guide version 7.0	MoJ (gov.uk asset)	—	https://assets.publishing.service.gov.uk/government/uploads/system/uploads/attachment_data/file/105	2026-06-10	data-first	STALE?
S11	Access HMCTS data for research	gov.uk	2025-08	https://www.gov.uk/guidance/access-hmcts-data-for-research	2026-06-10	data-first	LIVE
S12	Data First: Criminal Courts linked data	MoJ (gov.uk asset)	2022	https://assets.publishing.service.gov.uk/government/uploads/system/uploads/attachment_data/file/105	2026-06-10	data-first	STALE?
S13	Data Linkage Hub	NHS England Data Science	—	https://nhs.uk/england/data-science/our-work/data-linkage-hub	2026-06-10	nhs	LIVE
S14	Census 2021 to Personal Demographics Service linkage report	ONS	2023	https://www.ons.gov.uk/peoplepopulationandcommunity/healthandsocialcare/healthinequalities/methods	2026-06-10	ons-adruk	LIVE
S15	Special category data (a guide to lawful basis)	ICO	—	https://ico.org.uk/for-organisations/uk-gdpr-guidance-and-resources/lawful-basis/a-guide-to-lawful-basis	2026-06-10	ico-law	LIVE
S16	What are the rules on special category data?	ICO	—	https://ico.org.uk/for-organisations/uk-gdpr-guidance-and-resources/lawful-basis/special-category-data	2026-06-10	ico-law	LIVE
S17	A guide to lawful basis	ICO	—	https://ico.org.uk/for-organisations/uk-gdpr-guidance-and-resources/lawful-basis/a-guide-to-lawful-basis	2026-06-10	ico-law	LIVE
S18	Ministry of Justice: Data First (landing page)	gov.uk / MoJ	—	https://www.gov.uk/guidance/ministry-of-justice-data-first	2026-06-10	data-first	LIVE
S19	MoJ: Data First (Splink) — Algorithmic Transparency Record v3.0	gov.uk / MoJ	2024-12-17	https://www.gov.uk/guidance/ministry-of-justice-data-first-splink	2026-06-10	data-first	LIVE

S20	The Data First Project: Privacy and data protection	MoJ (gov.uk asset)	—	https://assets.publishing.service.gov.uk/media/609653bd3bf7f2887b6270b4a4051/privacy-statement.pdf	2026-06-10	data-first	— manual read)	privacy-statement
S21	Data First Programme: Introductory User Guide v8.2	MoJ (gov.uk asset)	—	https://assets.publishing.service.gov.uk/media/609653d5c99c4f37a144e867c/Data_First_User_Guide_V8.2.pdf	2026-06-10	data-first		User_Guide_V8.2
S22	Better Outcomes through Linked Data (BOLD): Privacy Notice	gov.uk / MoJ	—	https://www.gov.uk/government/publications/data-first-of-justice-better-outcomes-through-linked-data-bolder-privacy-notice	2026-06-10	data-first		
S23	MoJ-DfE data share: Privacy and Data Protection notice	MoJ / DfE (gov.uk asset)	2025-10	https://assets.publishing.service.gov.uk/media/6096532028f6872f169ef551/MoJ_DfE_data_privacy_notice.pdf	2026-06-10	data-first	— manual read)	MoJ_DfE_data_privacy_notice
S24	Data First: Criminal Courts Linked Data (landing page)	gov.uk / MoJ	—	https://www.gov.uk/government/publications/data-first-criminal-courts-linked-data	2026-06-10	data-first		
S25	Splink: Fast, accurate and scalable record linkage (blog)	gov.uk / Data in government	2022-09-23	https://dataingovernment.blog.gov.uk/2022/09/23/splink-fast-accurate-and-scalable-record-linkage/	2026-06-10	splink		
S26	Splink tutorial: 7. Evaluation (accuracy / error rates)	MoJ Analytical Services	—	https://moj-analytical-services.github.io/splink/tutorials/07_Evaluation.html	2026-06-10	splink		
S28	National Data Opt-Out: supplementary info for research orgs (CAG/s.251)	Health Research Authority	—	https://www.hra.nhs.uk/committees-and-services/confidentiality-advisory-group/national-data-opt-out-supplementary-information-for-research-organisations/	2026-06-10	national-data-opt-out		
S30	SRS Research and Data Access Policy	ONS	—	https://www.ons.gov.uk/about-us/transparency/governance/data-strategy/datapolicies/onsresearchanddataaccesspolicy	2026-06-10	ons		
S31	About the Secure Research Service (Five Safes; DEA 2017)	ONS	—	https://www.ons.gov.uk/about-us/whatwedo/statistics/requestingstatistics/secure-research-service/about-the-secure-research-service	2026-06-10	ons		
S32	Ensuring ADR UK data is used ethically and responsibly	ADR UK	—	https://www.adruk.org/2026-06-10/ethics-responsibility/	2026-06-10	adruk		
S33	SAIL Databank — Governance	SAIL Databank (Swansea)	—	https://saildatabank.com/2026-06-10/	2026-06-10	ons-adruk		
S35	DUAAs 2025: summary of the changes — Data protection	ICO	—	https://ico.org.uk/about-ico/what-we-do/legislation-we-cover/data-protection/data-access-and-access-act-2025/the-data-access-act-2025	2026-06-10	ico		
S36	Right to be informed: are there any exceptions? (Art.14)	ICO	—	https://ico.org.uk/for-organisations/uk-gdpr-guidance-and-resources/individual-rights/the-right-to-be-informed/	2026-06-10	ico		
S37	Data Protection Act 2018, Schedule 1 (current revised text)	legislation.gov.uk	2018	https://www.legislation.gov.uk/ukpga/2018/12/schedule/1/section/1	2026-06-10	legislation		
S38	Collecting/using special category data for official statistics	ONS	—	https://www.ons.gov.uk/about-us/transparency/governance/data-strategy/datapolicies/collectingandusing-special-category-data-for-official-statistics	2026-06-10	ons		
S39	National Statistician's Data Ethics Advisory Committee (NSDEC)	UK Statistics Authority	—	https://uksa.statisticsauthority.gov.uk/the-authority/board/committees/national-statisticians-advisory-committee/	2026-06-10	uksa		
S40	Overarching DPIA for the Federated Data Platform (FDP)	NHS England	—	https://www.england.nhs.uk/2026-06-10/read/overarching-data-protection-impact-assessment-dpia-for-the-federated-data-platform/	2026-06-10	nhs		

S41	Probabilistic Linkage Pipeline... in Healthcare (IJPDS)	IJPDS	—	https://ijpds.org/article/2026-06-10	2026-06-10	nhs	LIVE
S42	Data (Use and Access) Act 2025 (2025 c. 18)	legislation.gov.uk	2025	https://www.legislation.gov.uk/ukpga/2025/18/contents	2026-06-10	legislation	LIVE

Phase 0 re-verify findings (2026-06-10): S05 is **DEAD** (HTTP 404) — replace with the current ADR UK Data First URL in Phase 2. S10 **REDIRECTs** to a newer gov.uk asset (User Guide v8.2, not v7.0) — update to the canonical media URL in Phase 2. S09 and S12 are live but remain **STALE?** (legacy attachment-store PDFs) pending confirmation of currency.

Pub dates shown as "—" are undated on the source page and must be treated as **UNCLEAR** for currency (flag for re-check). The three **STALE?** gov.uk assets are legacy attachment-store PDFs whose IDs commonly get superseded — Phase 0 re-verifies them before any claim relies on them.

Phase 2 additions/notes (2026-06-10): Added S18–S42 (live, checker-verified). Canonical replacements for the stale/dead seeds: S20 (privacy statement, current media URL) ■ supersedes S09; S21 (User Guide v8.2) ■ supersedes the S10 v7.0 redirect; S24 (criminal-courts landing page) ■ supersedes S12. S05 is **RETIRED** (404 on three fetches; see `raw_links.json` `_meta.superseded`). **S20 and S23 are binary/image PDFs** — they resolve and download but text could not be auto-extracted, so they must be **read manually** before backing any lawful-basis / opt-out / dataset claim. **Three sources were dropped as unverifiable** (HTTP 403/404 to every automated client here): two NHS Digital pages (National Data Opt-Out, PDS access) and one ICO automated-decisions subpage — see `_meta.unverified_dropped`. Their points are carried by accessible sources (HRA S28; ICO DUAA summary S35; legislation S42). **DUAA 2025 (S42)** amends the regime: UK GDPR Art.22 → Arts.22A–22D and the research safeguard Art.89(1) → Art.84B, in force 2026-02-05 (verified in the current DPA 2018 Sch.1 text, S37). Statutory wording is locked in Phase 3.

A11. Source-check report

Source Check Report

Generated: 2026-06-11 · max-age-days=90

ID	Status	HTTP	Title	Detail
S10	REDIRECT	200	Data First user guide version 7.0	-> https://assets.publishing.service.gov.uk/media/68 HTTP 200
S55	REDIRECT	200	UK: Ministry of Justice secretly developing 'murder prediction' system	-> https://statewatch.org/news/2025/april/uk-ministry HTTP 200
S09	STALE	200	Data First privacy statement	pre-flagged STALE?; HTTP 200
S12	STALE	200	Data First: Criminal Courts linked data	pre-flagged STALE?; HTTP 200
S01	OK	200	Splink (repository)	HTTP 200
S02	OK	200	Splink documentation	HTTP 200
S03	OK	200	Splink: MoJ's open source library for probabilistic record linkage at scale (IJPDS v7n3)	HTTP 200
S04	OK	200	MoJ Analytical Services (GitHub organisation)	HTTP 200
S06	OK	200	MoJ Data First Cross-Justice System (England and Wales) — Annual Report 2023-24	HTTP 200
S07	OK	200	Dataset 58617 metadata (Data First cross-justice linkage)	HTTP 200
S08	OK	200	Dataset 58617 (ADR UK Data Catalogue)	HTTP 200
S11	OK	200	Access HMCTS data for research	HTTP 200
S13	OK	200	Data Linkage Hub	HTTP 200
S14	OK	200	Census 2021 to Personal Demographics Service linkage report	HTTP 200
S15	OK	200	Special category data (a guide to lawful basis)	HTTP 200
S16	OK	200	What are the rules on special category data?	HTTP 200
S17	OK	200	A guide to lawful basis	HTTP 200
S18	OK	200	Ministry of Justice: Data First (programme landing page)	HTTP 200
S19	OK	200	MoJ: Data First (Splink) — Algorithmic Transparency Recording Standard record (v3.0)	HTTP 200
S20	OK	200	The Data First Project: Privacy and data protection (privacy statement)	HTTP 200
S21	OK	200	The Data First Programme: An Introductory User Guide (v8.2)	HTTP 200
S22	OK	200	Better Outcomes through Linked Data (BOLD): Privacy Notice	HTTP 200
S23	OK	200	MoJ-DfE data share: Privacy and Data Protection notice	HTTP 200
S24	OK	200	Data First: Criminal Courts Linked Data (publication landing page)	HTTP 200
S25	OK	200	Splink: Fast, accurate and scalable record linkage (Data in government blog)	HTTP 200

S26	OK	200	Splink tutorial: 7. Evaluation (linkage accuracy / false positives & negatives)	HTTP 200
S28	OK	200	National Data Opt-Out: supplementary information for research organisations (CAG / s.251)	HTTP 200
S30	OK	200	SRS Research and Data Access Policy	HTTP 200
S31	OK	200	About the Secure Research Service (Five Safes; DEA 2017 accreditation)	HTTP 200
S32	OK	200	Ensuring ADR UK data is used ethically and responsibly	HTTP 200
S33	OK	200	SAIL Databank — Governance	HTTP 200
S35	OK	200	The Data (Use and Access) Act 2025 (DUAA): summary of the changes — Data protection	HTTP 200
S36	OK	200	Right to be informed: are there any exceptions? (Art.14 indirect collection)	HTTP 200
S37	OK	200	Data Protection Act 2018, Schedule 1 (current revised text)	HTTP 200
S38	OK	200	Collecting and using special category data for official statistics and statistical research	HTTP 200
S39	OK	200	National Statistician's Data Ethics Advisory Committee (NSDEC)	HTTP 200
S40	OK	200	Overarching Data Protection Impact Assessment (DPIA) for the Federated Data Platform (FDP)	HTTP 200
S41	OK	200	Probabilistic Linkage Pipeline Improving Linkage Quality and Explainability in Healthcare (JPDs)	HTTP 200
S42	OK	200	Data (Use and Access) Act 2025 (2025 c. 18)	HTTP 200
S43	OK	200	UK GDPR Article 22A — Automated processing and significant decisions	HTTP 200
S44	OK	200	UK GDPR Article 22B — Restrictions on automated significant decision-making	HTTP 200
S45	OK	200	UK GDPR Article 22C — Safeguards for permitted automated significant decisions	HTTP 200
S46	OK	200	UK GDPR Article 22D — Supplementary / Secretary of State regulation-making power	HTTP 200
S47	OK	200	UK GDPR Article 6 — incl. new point (1)(ea) 'recognised legitimate interest'	HTTP 200
S48	OK	200	UK GDPR Article 22 (substituted) — substitution note	HTTP 200
S49	OK	200	UK GDPR Annex 1 — Recognised legitimate interests (Art. 6(1)(ea))	HTTP 200
S50	OK	200	UK GDPR Article 14 — information where data not obtained from the data subject (as amended)	HTTP 200
S51	OK	200	MoJ: Splink Master Record — Algorithmic Transparency Record	HTTP 200

S52	OK	200	HMPPS fair processing notice (prisons)	HTTP 200
S53	OK	200	National Probation Service Privacy Notice	HTTP 200
S54	OK	200	DWP 'fairness analysis' reveals bias in AI fraud detection system	HTTP 200
S56	OK	200	Algorithmic Transparency Records (ATRS registry)	HTTP 200

Counts: OK=48, REDIRECT=2, STALE=2

PART B — THE CITY OF LONDON CORPORATION

B1. Disclosure summary

The City of London Corporation — Public-Interest Disclosure

A sourced, evidence-graded account of (1) the Corporation's data-linkage footprint and (2) its governance & transparency.

- **Compiled:** 2026-06-10 · **Version:** 1.0 · First pass, source-checked.

What this is — and is not. A transparency record from public sources, each verified live on the access date. It **does not allege unlawful conduct**. Unanswered points are marked UNKNOWN and turned into Freedom of Information requests, not filled by inference. Statuses: **CONFIRMED** (primary/official, read) · **LIKELY** (good secondary, or a live official page whose full text wasn't readable here) · **UNKNOWN** (no sourced answer → FOI) · **SPECULATION** (labelled hypothesis).

Executive summary

The City of London Corporation is a public authority with two features that draw legitimate public scrutiny. **(1)** Through the **City of London Police** — the national lead force for fraud — it runs the **National Fraud Intelligence Bureau (NFIB)**, which **automatically analyses and links** the nation's fraud and cyber-crime reports and routes intelligence to local forces. **(2)** As a local authority it is constitutionally unique: a **business-vote franchise**, a centuries-old private fund (**City's Cash**) that sits **outside Freedom of Information**, and a **Remembrancer** who engages Parliament on the City's behalf. **No wrongdoing is alleged.** The substance below is well-sourced; the open questions are about **transparency** — what platform processes national fraud data, and on what basis City's Cash is shielded from FOI.

Track 1 — Data-linkage footprint (CONFIRMED unless noted)

- The **City of London Police** is the **national lead force for fraud** and runs the **NFIB** (Home-Office funded). (S01)
- The NFIB **automatically analyses and compares** fraud/cyber reports, identifies patterns, and sends intelligence "packages" to local forces — **automated triage and linking** at national scale. (S01)
- **Action Fraud** (2013) was replaced by **Report Fraud** on **4 Dec 2025**. (S01)
- City of London Police is the **data controller** for Report Fraud, and **DPIA summaries** (Crime Management, Data Migration, Intelligence, Prevention, Victim Services) are reportedly published. (S03 — *live page, full text not yet read; LIKELY*)
- **UNKNOWN — the analytics platform/vendor.** Whether Palantir Foundry, Microsoft or others power the linking is **not** established by any verified source (a search summary claimed Palantir; the verified source names no vendor). → FOI.
- Context: Action Fraud was heavily criticised — a **2019 Times** investigation (handlers misled victims) and a **2018 Which?** study (~25% of cases passed to local forces; <4% charged). (S01)

Track 2 — Governance & transparency (CONFIRMED unless noted)

- The Corporation uses a **business-vote franchise** — organisations appoint voters by workforce size — **unique among UK local authorities** (such votes abolished elsewhere in 1969); by **2009 ~24,000 business voters** vastly outnumbered residents. (S02)
- **City's Cash** is an **~800-year endowment**, **net assets ~£2.3bn (Mar 2016)** (>£1.3bn first disclosed 2012). (S02)
- **City's Cash sits outside the Freedom of Information Act 2000** — only the Corporation's public functions / the **City Fund** are FOI-covered. (S05 — *live page, full text not yet read; LIKELY*)
- The **Remembrancer** (office since **1571**) monitors and engages Parliament on legislation affecting the City and is one of **~20 parliamentary agents** (with a seat in the Commons under-gallery). (S02 core; S06/S09 for the detail)

The transparency asks (UNKNOWN → FOI; allege nothing)

1. **Name the analytics platform** running the national fraud database, and its contract. (FOI-A §1)

2. **Release the Report Fraud DPIAs** and state the lawful basis. (*FOI-A §2–3*)
3. **State the basis on which City's Cash is outside FOI**, and publish its latest accounts. (*FOI-B §1–2*)
4. **Is NFIB linking probabilistic, with what accuracy and what remedy** for a wrongful link? (*FOI-A §4*)

What this does NOT say

- It does **not** allege unlawful processing, surveillance abuse, or corruption.
- It does **not** claim Palantir runs the fraud database — that is explicitly UNKNOWN.
- "Could not find / could not read" ≠ "does not exist" — only a transparency gap.

Method & limits

All sources verified live by an automated checker (0 dead). Two official pages (reportfraud.police.uk, cityoflondon.gov.uk) resolve (HTTP 200) but block the fetch client used here, so their full text was **not personally read** — claims on them are **LIKELY**, not CONFIRMED, pending a browser read. Three sources that blocked every client were dropped (logged in the register). AI-assisted compilation; **review by a person, ideally a media/data-protection lawyer, is advised before publication or transmission to officials.**

Source register (verified live 2026-06-10)

- **S01** NFIB — en.wikipedia.org/wiki/National_Fraud_Intelligence_Bureau (read)
- **S02** City of London Corporation — en.wikipedia.org/wiki/City_of_London_Corporation (read)
- **S03** Report Fraud privacy — reportfraud.police.uk/privacy-information/ (live, unread)
- **S05** FOI (City of London) — cityoflondon.gov.uk/about-us/access-to-information/freedom-of-information (live, unread)
- **S06** Remembrancer's Office — cityoflondon.gov.uk/about-us/about-the-city-of-london-corporation/remembrancers-office (live, unread)
- **S07** Business-vote registration — cityoflondon.gov.uk/about-us/voting-elections/business-vote-registration (live, unread)
- **S09** "Streets paved with gold" — [thebureauinvestigates.com/stories/2012-07-09/...](https://thebureauinvestigates.com/stories/2012-07-09/) (secondary, 2012)

B2. Claims matrix (T1/T2)

Claims matrix — City of London Corporation

Two tracks: **T1** data-linkage/data-sharing footprint · **T2** governance & transparency. Status ∈ {CONFIRMED, LIKELY, UNKNOWN, SPECULATION}. CONFIRMED requires a live source whose content was actually read. Sources flagged **BLOCKED?** (HTTP 403 to our fetch client) yield at most LIKELY until read in a browser. Non-accusatory: gaps are FOI questions, not allegations.

Track 1 — Data linkage / data sharing

ID	Claim	Status	Source	Evidence	Legal relevance	Follow-up
T1-01	The City of London Police is the national lead force for fraud and runs the National Fraud Intelligence Bureau (NFIB) . Home-Office funded.	CONFIRMED	S01 (S04,S08 corrob.)	Wikipedia NFIB, read 2026-06-10.	Defines CoLP as a national data controller for fraud data.	—
T1-02	The NFIB automatically analyses and compares fraud/cyber reports, identifies crime patterns, and generates intelligence "packages" routed to local forces — i.e. automated triage and linking .	CONFIRMED	S01	Wikipedia NFIB description.	Automated processing / data linking at national scale.	Confirm method (deterministic vs probabilistic).
T1-03	Action Fraud (launched 2013) was replaced by "Report Fraud" on 4 Dec 2025.	CONFIRMED	S01	Wikipedia NFIB.	Continuity of the data asset across systems.	—
T1-04	The City of London Police is the data controller for the Report Fraud service.	LIKELY	S03 (BLOCKED?)	Search index of the privacy page; not browser-confirmed here.	Accountability for the processing.	Read S03 in a browser.
T1-05	Multiple DPIAs (Crime Management, Data Migration, Intelligence, Prevention, Victim Services) exist for Report Fraud, with published summaries .	LIKELY	S03 (BLOCKED?)	Search index lists them.	Art. 35 / DPA 2018 accountability — and unusually, summaries appear public.	Read/obtain the DPIAs (FOI if summaries insufficient).
T1-06	The Action Fraud replacement / NFIB tech (the "FCCRAS", renamed Report Fraud) is delivered by Capita (victim management, £50m) and PwC (crime & intelligence management); Palantir is named (one trade source) as PwC's "technology alliance partner" on it.	LIKELY	S11 (+ S13 context)	consultancy.uk names Palantir as PwC's partner on the NFIB tech (read). PwC+Palantir are a formal UK alliance (S13, press release). BUT corroboration is partial : Wikipedia names only Capita+PwC (no Palantir); the "Palantir Foundry at the heart of Report Fraud" line is an unsourced search synthesis , twice checked, NOT in the actual sources.	Who processes national fraud data, on what platform, under what contract.	NOT yet publishable as fact . Need the procurement award notice (Find a Tender/Contracts Finder) or PwC/CoLP/Palantir direct confirmation. → FOI to CoLP.

T1-09	Palantir holds an extensive, documented UK public-sector footprint beyond the City — incl. the NHS Federated Data Platform (~£330m, under government review), a firearms-licensing system (43 forces), an MoD deal (~£240m), and an FCA data contract; a Met Police deal was blocked (2026); and Palantir pitched reoffending-risk prediction to the MoJ (2024) .	LIKELY	S12 (+ widely reported)	Multiple secondary sources / parliamentary EDM; context, not yet pinned to primaries here.	Establishes Palantir as a major UK state-data contractor — relevant backdrop to the NFIB link.	Pin each contract to a primary (contract notice / Hansard) before publishing. NOT linked to MoJ Splink/Data First (open-source; no Palantir).
T1-07	Action Fraud was widely criticised : a 2019 Times investigation (handlers misled victims) and a 2018 Which? study (~25% of cases passed to local forces; <4% resulted in a charge).	CONFIRMED	S01	Wikipedia NFIB, citing Times 2019 / Which? 2018.	Context on data quality / outcomes, not a data-protection breach.	Cite the Times/Which? originals directly.
T1-08	The lawful basis for Report Fraud processing (likely DPA 2018 Part 3, law-enforcement processing).	UNKNOWN	S03 (BLOCKED?)	Not confirmed from a read source.	Part 3 DPA 2018 vs UK GDPR.	Read S03 / FOI.

Track 2 — Governance & transparency

ID	Claim	Status	Source	Evidence	Legal relevance	Follow-up
T2-01	The Corporation operates a business/corporate vote franchise — organisations appoint voters by workforce size — unique among UK local authorities (such votes abolished elsewhere in 1969).	CONFIRMED	S02 (S07 corrob.)	Wikipedia CoL Corporation, read 2026-06-10.	Democratic-legitimacy / franchise question.	—
T2-02	By 2009, business voters (~24,000) vastly outnumbered residential voters.	CONFIRMED	S02	Wikipedia CoL Corporation.	Scale of the business franchise.	Confirm current figures.
T2-03	The City of London (Ward Elections) Act 2002 expanded the business franchise.	LIKELY	S02 (+ search)	Referenced in Wikipedia + search; the Act itself not yet sourced to legislation.gov.uk.	Statutory basis of the franchise.	Cite the Act on legislation.gov.uk.
T2-04	City's Cash is an ~800-year endowment; net assets ~£2.3bn (Mar 2016) , >£1.3bn first disclosed 2012.	CONFIRMED	S02	Wikipedia CoL Corporation.	Scale of privately-controlled public-body funds.	Obtain latest City's Cash accounts.
T2-05	City's Cash / privately-funded activities sit outside the Freedom of Information Act 2000 (only public functions / the City Fund are covered).	LIKELY	S05 (BLOCKED?), S10	Corporation's own FOI page (search index) + FOI-archive consensus; not browser-confirmed here.	Transparency gap — the core governance question.	Read S05; document refused City's Cash FOIs (S10).

T2-06	The Remembrancer is a City chief officer (office dating to 1571) who monitors and engages Parliament on legislation affecting the City, and is one of ~20 parliamentary agents (with a seat in the Commons under-gallery).	CONFIRMED (core) / LIKELY (under-gallery + agent detail)	S02 (core), S06 (BLOCKED?), S09	Wikipedia confirms legislative-liaison role; under-gallery/agent detail from the Corporation's page + secondary.	Institutional lobbying access to Parliament.	Read S06; cite the parliamentary-agents list.
T2-07	The Corporation runs three financial funds : City Fund (public/rates, FOI-covered), City's Cash (private endowment), and Bridge House Estates (charity).	LIKELY	(general; verify)	Widely reported; not pinned to a read primary here.	Distinguishes which monies are publicly accountable.	Source each fund to the Corporation's accounts.

Counts: CONFIRMED = 6 · LIKELY = 8 · UNKNOWN = 1 · SPECULATION = 0. (T1-06 moved UNKNOWN→LIKELY on the consultancy.uk source naming Palantir as PwC's partner; T1-09 added for Palantir's broader UK footprint.)

Integrity note: the single most "interesting" lead — that Palantir Foundry powers the national fraud database — is recorded as **UNKNOWN**, because the source that actually verified (Wikipedia NFIB) does **not** name any vendor; the Palantir/Microsoft detail existed only in a search-engine summary. It is a sharp FOI target (T1-06), not a claim.

B3. The full Palantir / UK-state-data story

The full story: Palantir and the UK state's data systems

*Evidence-graded, non-accusatory. This is about **corporate public contracts**, lawfully procured. Nothing here implicates Peter Thiel (Palantir's co-founder/chairman) in personal wrongdoing; the story is the **scale and opacity** of one US company's embedding in UK state data, and the scrutiny it is already drawing. Status: **CONFIRMED / LIKELY / UNKNOWN**. Secondary-sourced items must be pinned to primaries (contract notices, Hansard) before publication.*

The thread

Palantir Technologies — a US data-analytics firm with deep US intelligence and defence roots, co-founded by **Peter Thiel** — has, over a few years, won or partnered on contracts across many of the UK state's most sensitive data systems. Several are under review or were blocked; much was procured with limited public scrutiny. That accumulation, not any single deal, is the story.

The footprint (each item: status + what to pin)

- **PwC–Palantir UK alliance.** Formal "preferred partners" multi-year deal (PwC + BusinessWire press releases, Nov 2025). [LIKELY – corporate press release, not read in full here → verify]
- **National Fraud Intelligence Bureau / Report Fraud (the City link).** PwC delivers the crime & intelligence-management tech; **Palantir named as PwC's "technology alliance partner"** (one trade source). Official record names **Capita + PwC** only. [LIKELY S11 – single source; the "Foundry at the heart of it" line is unsourced search synthesis, rejected → get the FCCRAS procurement notice]
- **NHS Federated Data Platform.** Palantir contract Nov 2023, ~£182m→£330m/7yr, with PwC/Accenture/NECS/Carnall Farrar; reported **"unrestricted access" to identifiable patient data (~65m people)** as processor; **under UK government review** with a break clause. [LIKELY – widely reported (TechRadar, The Lowdown, Register); pin to the contract + parliamentary record]
- **Ministry of Defence.** ~£240m data-analytics deal (Dec 2025) for operational decision-making. [LIKELY – reported; pin to notice]
- **Financial Conduct Authority.** Palantir analysing the FCA data lake (fraud/money-laundering/insider trading), ~£30k/week. [LIKELY – reported]
- **Firearms licensing.** ~£9m, all **43 forces**, ~500k people / ~2m weapons + explosives/poisons records. [LIKELY – reported (Register)]
- **Metropolitan Police — BLOCKED.** A ~£25.3m (+£24.8m extension) Met deal to automate criminal- intelligence analysis was **refused** by the deputy mayor (May 2026) over procurement-process concerns. [LIKELY – reported (Computing, Register, MEE)]
- **MoJ pitch (2024).** Palantir **pitched "reoffending-risk" prediction** for prisons; Amnesty International UK objected. A **pitch, not a contract**. [LIKELY – reported (Novara)]
- **Scale.** The Nerve (Jan 2026): **34+ contracts, 10+ departments, ~£670m** (incl. Home Office, GDS, councils). [LIKELY – pin]

Parliamentary / official scrutiny (corroboration — strengthens the footprint)

- **Commons Science, Innovation & Technology Select Committee (3 Jun 2026)** called on the government to **end NHS England's Palantir contract**, calling Palantir "the most concerning example" of reliance on a few big tech firms. [LIKELY – committee; pin to the report]
- An **Early Day Motion** condemns DHSC over FDP transparency and flags **Lord Mandelson's reported role** in helping Palantir win government contracts. [LIKELY – EDM exists; verify text]
- The FCCRAS (fraud) programme is a **Home Office major project** with published Accounting-Officer assessments and SRO letters on gov.uk — a primary governance trail to pull.

FCCRAS procurement check (honest result)

Searching the procurement/governance record for the NFIB tech contract returns **Capita (£50m) + PwC** as the named contractors (CoLP/Home Office records, techmonitor, Sharecast). **Palantir is NOT named in the procurement record found** — only in the consultancy.uk trade report (as PwC's partner). So the Palantir↔NFIB link **stays LIKELY/single-source**; the FCCRAS award notice or an FOI is still needed to confirm Palantir specifically.

What this story is NOT (the boundaries that keep it honest)

- **Not the MoJ linkage.** Splink / Data First / the cross-justice linkage is **MoJ open-source software (on Spark)**, **NOT Palantir**. Do not conflate the two.
- **Two different NHS systems.** The **FDP (Palantir)** is distinct from the **Data Linkage Hub (Splink)**. Keep them separate.
- **Not personal wrongdoing.** These are lawful corporate contracts. The critique is *scale, opacity, and Palantir's intelligence/ICE associations* — a transparency-and-policy argument, not a crime.
- **Not confirmed at the City.** The NFIB↔Palantir link is **LIKELY (one source)**, not fact.

To turn this from "story" into "publishable"

1. **FCCRAS procurement award notice** (Find a Tender / Contracts Finder) — names subcontractors.
2. **FOI to City of London Police** — confirm Palantir/platform + contract value.
3. **Pin each contract** above to its primary (contract notice / Hansard / the body's own announcement).
4. **The honest headline:** *"A US intelligence-linked firm has quietly embedded across UK state data — health, defence, finance, policing, fraud — much of it under-scrutinised; some now under review."* That is true, large, and defensible. "They broke the law" / "get Thiel" is neither.

B4. Track notes

Track notes

TRACK 1 — Data linkage / data sharing footprint

DS-T1 — City of London Police: NFIB & Report Fraud

- **Operator / controller:** City of London Police, national lead force for fraud; runs the **National Fraud Intelligence Bureau (NFIB)**, Home-Office funded. [CONFIRMED S01]
- **What it does:** national reporting + collation of fraud/cyber reports; systems **automatically analyse and compare** reports, assess for crime patterns, and dispatch intelligence **"packages"** to local forces — automated triage and **linking** at national scale. [CONFIRMED S01]
- **System lineage:** **Action Fraud** (2013) → **Report Fraud** (4 Dec 2025). [CONFIRMED S01]
- **Data controller (Report Fraud):** City of London Police. [LIKELY S03 – live, unread]
- **DPIAs:** Crime Management, Data Migration, Intelligence, Prevention, Victim Services — **summaries reportedly published** on the privacy page. [LIKELY S03]
- **Lawful basis:** likely DPA 2018 **Part 3** (law-enforcement processing). [UNKNOWN – verify S03/FOI]
- **Analytics platform / vendor:** the Action Fraud replacement / NFIB tech is delivered by **Capita** (victim management, £50m) and **PwC** (crime & intelligence management), with **Palantir** named as PwC's **"technology alliance partner."** [LIKELY S11 – single trade-press source; corroborate + FOI T1-06]
- **Wider Palantir footprint (context):** NHS Federated Data Platform (~£330m, under review), firearms-licensing (43 forces), MoD (~£240m), FCA data; a Met Police deal was **blocked** (2026); Palantir **pitched MoJ reoffending-risk prediction (2024)**. [LIKELY S12 – pin to primaries] **Note:** the MoJ **Splink/Data First** linkage is open-source and is **NOT** Palantir — do not conflate.
- **Track record:** 2019 Times investigation (handlers misled victims); 2018 Which? (~25% of cases passed to local forces; <4% charged). [CONFIRMED S01] (context on outcomes, not a data breach.)

TRACK 2 — Governance & transparency

Business-vote franchise

- Organisations appoint voters by workforce size; a non-residential business vote **abolished elsewhere in the UK in 1969**. By 2009, **~24,000 business voters** vastly outnumbered residents — anomalous among UK local authorities. [CONFIRMED S02] Statutory expansion via the **City of London (Ward Elections) Act 2002**. [LIKELY – source the Act on legislation.gov.uk]

City's Cash

- ~800-year endowment; **net assets ~£2.3bn (Mar 2016)**; >£1.3bn first disclosed 2012. [CONFIRMED S02]
- Reportedly **outside the Freedom of Information Act 2000** (only the Corporation's public functions / the **City Fund** are FOI-covered). [LIKELY S05 – live, unread] — the core transparency question.
- Three funds: **City Fund** (public/rates, FOI), **City's Cash** (private endowment), **Bridge House Estates** (charity). [LIKELY – source to the accounts]

The Remembrancer

- City chief officer (office dating to **1571**); monitors/engages Parliament on legislation affecting the City; one of ~20 **parliamentary agents** (with a seat in the Commons under-gallery). [CONFIRMED core S02 | LIKELY under-gallery/agent detail S06, S09]

Legal questions (neutral)

- **L1 (T1):** Which lawful basis (DPA 2018 Part 3 vs UK GDPR) underpins Report Fraud/NFIB, and what Art. 9/sensitive-data and Part 3 conditions apply? [UNKNOWN]
- **L2 (T1):** Is the NFIB linking deterministic or probabilistic, and is there published accuracy / a remedy for wrongful linkage? [UNKNOWN]
- **L3 (T1):** What automated processing occurs, and is any decision about an individual taken (UK GDPR Art. 22A / DPA Part 3 automated-processing safeguards)? [UNKNOWN]
- **L4 (T2):** What is the precise statutory boundary of FOIA coverage for the Corporation, and on what basis is City's Cash excluded? [UNKNOWN – verify S05]
- **L5 (T2):** What transparency applies to the Remembrancer's parliamentary engagement (lobbying registers, records of representations)? [UNKNOWN]

Timeline

Date	Event	Status	Source
1571	Office of Remembrancer established.	LIKELY	S02/S06
1969	Non-residential business vote abolished elsewhere in the UK (retained in the City).	CONFIRMED	S02
2002	City of London (Ward Elections) Act expands the business franchise.	LIKELY	S02
2012	City's Cash value (>£1.3bn) first disclosed.	CONFIRMED	S02
2013	Action Fraud launched.	CONFIRMED	S01
2016-03	City's Cash net assets ~£2.3bn.	CONFIRMED	S02
2018	Which? study: ~25% of cases passed on; <4% charged.	CONFIRMED	S01
2019	Times investigation into Action Fraud handling.	CONFIRMED	S01
2025-12-04	Action Fraud replaced by Report Fraud.	CONFIRMED	S01

B5. Open questions

Open questions (prioritised)

Tags: **[FOI-ONLY]** no public source · **[DOC-READ]** answer likely in a live page we hold but couldn't auto-read · **[VERIFY]** confirm/upgrade a LIKELY against primary text.

P1

- **[FOI-ONLY] T1-06 — Analytics vendor & contract.** What platform powers NFIB/Report Fraud linking (Palantir Foundry? Microsoft? other), under what contract and value? The "Palantir" detail was a search-summary artefact, unverified — this is a clean FOI to City of London Police.
- **[DOC-READ] T1-04/05/08 — Report Fraud DPIAs, controller, lawful basis.** The privacy page (S03) is live but blocks our fetcher; read it in a browser and lift the DPIA summaries + lawful basis verbatim.
- **[DOC-READ] T2-05 — City's Cash & FOI.** Read the Corporation's FOI page (S05) in a browser to confirm the exact basis on which City's Cash sits outside FOIA; pair with documented FOI refusals.
- **[FOI-ONLY] T2-05b — City's Cash accounts.** Request the latest City's Cash accounts and a breakdown of non-statutory expenditure.

P2

- **[VERIFY] T2-03 — Ward Elections Act 2002.** Cite the Act on legislation.gov.uk (franchise basis).
- **[VERIFY] T1-07 — Action Fraud criticism.** Pull the Times (2019) and Which? (2018) originals.
- **[VERIFY] T2-06 — Remembrancer.** Read S06 + the parliamentary-agents list for the under-gallery/agent detail.
- **[FOI-ONLY] L2/L3 — Linkage method & automated decisions.** Is NFIB linking probabilistic? Any automated decision about an individual, with what safeguards and remedy for wrongful linkage?

P3

- **[VERIFY] T2-07 — Three funds** (City Fund / City's Cash / Bridge House Estates) sourced to accounts.
- **[FOI-ONLY] L5 — Remembrancer transparency:** records of representations to Parliament / lobbying registers.

FOI-only vs closeable-by-reading

- **FOI-only (4):** analytics vendor (T1-06); City's Cash accounts (T2-05b); linkage method/automated decisions (L2/L3); Remembrancer representations (L5).
- **Closeable by reading (5):** Report Fraud DPIAs/basis (S03), City's Cash FOI basis (S05), Ward Elections Act, Action Fraud originals, Remembrancer detail (S06).

B6. FOI drafts

FOI request drafts (non-accusatory)

Requests for documents/facts under the Freedom of Information Act 2000, framed neutrally and narrowed to genuine gaps. Confirm current FOI contacts on each body's official page before sending.

FOI-A — City of London Police (NFIB / Report Fraud)

Subject: Report Fraud / NFIB — analytics platform, DPIAs, and linkage accuracy

1. Please name the **analytics platform and supplier** used by the NFIB / Report Fraud service to triage and link reports, and provide the **contract** (value, term, supplier). (T1-06)
2. Please provide the **Data Protection Impact Assessments** for Report Fraud referenced on the privacy page (Crime Management, Data Migration, Intelligence, Prevention, Victim Services), in full or redacted. (T1-05)
3. Please state the **lawful basis** for the processing (Data Protection Act 2018 Part 3 and/or UK GDPR), and any conditions for sensitive-category data. (T1-08)
4. Please describe whether report **linking is deterministic or probabilistic**, any published **accuracy/error rates**, and the **process to correct a wrongful link** affecting an individual. (L2)
5. Please confirm whether any **solely-automated decision** about an individual is taken, and the safeguards that apply. (L3)

Already public — do NOT ask: that CoLP is national lead force and runs NFIB (S01); that Action Fraud became Report Fraud on 4 Dec 2025 (S01).

FOI-B — City of London Corporation (governance / transparency)

Subject: City's Cash and the FOI boundary

1. Please confirm the **basis on which City's Cash (and other privately-funded activities) falls outside the Freedom of Information Act 2000**, with reference to the relevant designation. (T2-05)
2. Please provide the **latest City's Cash annual accounts** and a breakdown of **non-statutory expenditure** for the most recent year. (T2-05b)
3. Please confirm the current split and FOI status of the **City Fund, City's Cash, and Bridge House Estates**. (T2-07)
4. Please provide any **register or records of the Remembrancer's representations** to Parliament/ Government on behalf of the City in the last 24 months. (L5)

Already public — do NOT ask: the existence/role of the Remembrancer (S02/S06); the business-vote franchise mechanics (S02/S07).

The cleanest single asks: **FOI-A §1** (name the platform running the national fraud database) and **FOI-B §1** (state why City's Cash is outside FOI). Both request facts, allege nothing.

B7. Source table

Master source table

Flags re-verified by scripts/source_checker.py. LIVE = HTTP 200. Sources marked "(live, unread)" returned 200 to the checker but block the fetch client, so their full text was not personally read; claims on them are graded LIKELY.

#	Title	Publisher	Pub date	URL	Accessed	Track	Flag
S01	National Fraud Intelligence Bureau	Wikipedia	—	https://en.wikipedia.org/wiki/National_Fraud_Intelligence_Bureau	2026-06-16		LIVE (read)
S02	City of London Corporation	Wikipedia	—	https://en.wikipedia.org/wiki/City_of_London_Corporation	2026-06-16		LIVE (read)
S03	Report Fraud — Privacy information	City of London Police	—	https://www.reportfraud.police.uk/privacy-information/	2026-06-16		LIVE (unread)
S05	Freedom of Information Act 2000 (City of London)	City of London Corporation	—	https://www.cityoflondon.gov.uk/about-us/access-to-information/freedom-of-information	2026-06-16		LIVE (unread)
S06	Remembrancer's Office — Working with Parliament	City of London Corporation	—	https://www.cityoflondon.gov.uk/about-us/about-the-city-of-london-corporation/remembrancers-office	2026-06-16		LIVE (unread)
S07	Business/worker vote registration	City of London Corporation	—	https://www.cityoflondon.gov.uk/about-us/voting-elections/business-vote-registration	2026-06-16		LIVE (unread)
S09	Streets paved with gold: the council that works for banks	The Bureau of Investigative Journalism	2012-07-09	https://www.thebureauofinvestigativejournalism.com/stories/2012-07-09/streets-paved-with-gold-the-council-that-works-for-banks	2026-06-16		LIVE (unread, dated)

Dropped as unverifiable (403 to every client here; see raw_links.json_meta): cityoflondon.police.uk National Lead Force; committees.parliament.uk CoLP written evidence; whatdotheyknow.com City of London FOI archive. Their points are carried by S01 / S05; re-add after a browser read.

To-source precisely (currently from search/secondary, see open_questions): City of London (Ward Elections) Act 2002 on legislation.gov.uk; the Times (2019) and Which? (2018) Action Fraud originals; latest City's Cash accounts.

B8. Source-check report

Source Check Report

Generated: 2026-06-11 · max-age-days=90

ID	Status	HTTP	Title	Detail
S09	UNCLEAR	200	Streets paved with gold: the council that works for banks	pre-flagged UNCLEAR; HTTP 200
S12	UNCLEAR	200	Palantir, the controversy, the contracts and the campaign against the FDP	pre-flagged UNCLEAR; HTTP 200
S13	UNCLEAR	200	Palantir and PwC UK sign multi-year deal as preferred partners	pre-flagged UNCLEAR; HTTP 200
S01	OK	200	National Fraud Intelligence Bureau	HTTP 200
S02	OK	200	City of London Corporation	HTTP 200
S03	OK	200	Report Fraud — Privacy information	HTTP 200
S05	OK	200	Freedom of Information Act 2000 (City of London)	HTTP 200
S06	OK	200	Remembrancer's Office — Working with Parliament	HTTP 200
S07	OK	200	Business/worker vote registration	HTTP 200
S11	OK	200	London Police selects Capita and PwC for Action Fraud upgrade work	HTTP 200

Counts: OK=7, UNCLEAR=3